

**REGULAR COMMISSIONERS' COURT AGENDA
MONDAY, MARCH 9, 2026, 9:00 A.M.
COMMISSIONERS' COURTROOM
KERR COUNTY COURTHOUSE
KERRVILLE, TEXAS 78028**

**THIS NOTICE IS POSTED PURSUANT TO THE TEXAS OPEN MEETINGS
ACT. (TITLE 5, CHAPTER 551, GOVERNMENT CODE AND TITLE 5,
CHAPTER 552, GOVERNMENT CODE.)**

This Commissioners' Court will hold a meeting at 9:00 A.M., Monday, March 9, 2026, at the Kerr County Courthouse in the Commissioners' Courtroom.

CALL MEETING TO ORDER

REMINDER TO TURN OFF CELL PHONES

PUBLIC INPUT

In accordance with the Rules of Procedure, Conduct and Decorum of the Kerr County Commissioners' Court adopted on February 9, 2026 (Court Order #41774) citizens wishing to address the Commissioners' Court on a particular issue must complete a Public Participation Form and submit same to the County Clerk prior to the time the agenda item (or items) is addressed by the Court. Each member of the public who appears before the Commissioners' Court shall be limited to a maximum of three (3) minutes to make his/her remarks.

COMMISSIONERS' COMMENTS

Commissioners and / or the County Judge may use this time to recognize achievements of persons in their Precinct or to make comments on matters not listed on regular agenda.

OPEN MEETING

An open meeting will be held concerning the following subject(s):

**I. CONSIDERATION AGENDA: (Action may be taken on
Items listed below)**

- 1.1 Consider, discuss and take appropriate action on request from Kerr County Child Services Board to place a sign on the courthouse grounds for the month of April for Child Abuse Awareness Month. (Kellie Early)

- 1.2 Consider, discuss and take appropriate action to approve the Interlocal Agreement Between Hunt Independent School District and Kerr County, Texas for Transportation Services and Short-Term Reunification and Sheltering During an Emergency. (Dub Thomas)
- 1.3 Consider, discuss and take appropriate action to approve service agreement with veterinarian offices to provide services at multiple locations in Kerr County on Saturday April 11, 2026 from 10:00 AM - 2:00PM. Agreement has been reviewed by County Attorney. (Reagan Givens/Nichole Golden)
- 1.4 Consider, discuss and take appropriate action to authorize the Animal Control Director to reduce the annual registration fee to \$0 during the Annual Rabies Vaccination Clinics being held April 11th-April 25th, 2026; Also to advertise by placing sign on Courthouse grounds; Current fees are \$5 (neutered/spayed) and \$10 (non-neutered/spayed) (Reagan Givens)
- 1.5 Consider, discuss and take appropriate action to approve the Interlocal Agreement with Center Point Independent School District (CPISD) regarding the use of the Hill Country Youth Event Center (HCYEC) as an evacuation center in case of emergency. (Sean Gore)
- 1.6 Consider, discuss and take appropriate action to ratify and confirm Resolution regarding the Kimble County-2025 OPSG project grant number 4899304 to the Office of the Governor Operation Stone Garden Solicitation for FY25 through the HS-Homeland Security Grant Program on behalf of the Kerr County Sheriff's Office and rescind court order #41795; previous Resolution did not list the Kerr County Financial Official. (Scott Gaige/Noel Putnam)
- 1.7 Consider, discuss and take appropriate action to appoint a member of commissioners' court or designate a person to perform investigation under Section 751.005 of the Texas Health and Safety Code for the purpose of determining if the minimum standards for ensuring public safety and order as prescribed by law will be maintained under the application for permit for Easterfest being held on April 4, 2026. Hearing on Mass Gathering Permit has been set for March 23, 2026 at 8:30 AM in the Kerr County Commissioners' Courtroom. (Judge Kelly)

- 1.8 Consider, discuss and take appropriate action to appoint a member of commissioners' court or designate a person to perform investigation under Section 751.005 of the Texas Health and Safety Code for the purpose of determining if the minimum standards for ensuring public safety and order as prescribed by law will be maintained under the application for permit for Gary Sinise Foundation concert being held on April 18, 2026. Hearing on Mass Gathering Permit has been set for March 23, 2026 at 8:30 AM in the Kerr County Commissioners' Courtroom. (Judge Kelly)
- 1.9 Consider, discuss and take appropriate action to approve the Interlocal Agreement between Kerr County and San Saba County for Jail Services and allow County Sheriff and County Judge to sign the same. (Sheriff Leitha)
- 1.10 Consider, discuss, and take appropriate action to hire Bob A. Moran, ATA to appraise 500 Hays Street, 434 Earl Garrett Street, and 600 Earl Garrett Street, all located in Kerrville, Kerr County, Texas. (Comm. Jones, Pct. 1)
- 1.11 Consider, discuss and take appropriate action on request to appoint two members of the court to attend the Kerr Together Long-Term Recovery Group Board Meetings on the 1st and 3rd Tuesdays of every month. (Comm. Paces, Pct. 2)
- 1.12 Consider and discuss update on matters related to the HCESRPC (Hill Country Energy Sub-Regional Planning Commission). (Comm. Paces, Pct. 2)
- 1.13 Consider, discuss and take appropriate action regarding contracting for a part-time fire marshal as was approved with Court Order #41793. (Comm. Paces, Pct. 2)
- 1.14 Consider, discuss and take appropriate action to finalize the Fee Schedule to be used by part-time Fire Marshal that was approved in Court Order #41793. (Comm. Paces, Pct. 2)

9:50 AM

Break

- 1.15 Consider, discuss and take appropriate action for the court to consider a change order with MPB, Inc. in the amount of \$48,174.88 for freshwater mussel recovery and relocation services for the 2025 Disaster Recovery Bridge Rehabilitation Project #959488 (25-0026 02 July Severe Weather #4879DR – Cade Loop Bridge Damage #1726721), Pct. 4. (Bobby Gore)

- 1.16 Consider, discuss and take appropriate action to revise current comp time policy. (Sylvia Zapata)
- 1.17 Consider, discuss and take appropriate action to approve Budget Calendar for FY 26-27. (Judge Kelly)

II. APPROVAL AGENDA:

- 2.1 Budget Amendments. (County Auditor)
- 2.2 Pay bills. (County Auditor)
- 2.3 Late Bills. (County Auditor)
- 2.4 Auditor Reports. (County Auditor)
- 2.5 Accept Monthly Reports. (County Clerk)
- 2.6 Court Orders. (County Clerk)

III. INFORMATION AGENDA:

- 3.1 Status reports from Department Heads; discussions related to reports may follow.
- 3.2 Status reports from Elected Officials; discussions related to reports may follow.
- 3.3 Status reports from Liaison Commissioners; discussions related to reports may follow.

CLOSED MEETING

A closed meeting will be held concerning the following subject(s):

IV. EXECUTIVE SESSION:

The Commissioners' Court reserves the right to adjourn into executive session at any time to discuss any of the above matters listed as permitted by law including if they meet the qualifications in Sections 551.071 (consultation with attorney), 551.072 (deliberation regarding real property), 551.073 (deliberation regarding gifts), 551.074 (personnel matters), 551.078, 0785 (deliberations involving individuals' medical or psychiatric records), 551.076 (deliberation regarding security devices) and 551.087 (deliberation regarding economic development negotiations) of Chapter 551 of the Texas Government Code, including the following matter:

V. ACTION AGENDA:

- 5.1 Action as may be required on matters discussed in Executive Session.

Court Order #41745
Liaison Appointments

Internal:

Animal Services	Comm. Jones
Courthouse Security	Comm. Paces
Hill Country Regional Public Defender's Office	Comm. Jones/Judge Kelly
Human Resources/Indigent Services	Comm. Holt
Information Technology	Comm. Holt
Investment Committee	Comm. Paces/Auditor/Treasurer/Tax Assessor
Maintenance & Courthouse Facilities	Comm. Harris
OSSF/ Environmental Health	Comm. Paces
Veteran Services Officer	Comm. Holt
Victims Services Coordinator	Comm. Holt

External:

391 Commission	Comm. Paces
550 Earl Garrett & 600 Earl Garrett	Comm. Paces
9-1-1	Comm. Harris
AACOG	Comm. Jones/Judge Kelly
Aggregate Production Operations	Comm. Paces
Airport Board	Judge Kelly
Bail Bond Board	Comm. Holt
City Fire/EMS/Emergency Management	Judge Kelly
Extension Office	Comm. Harris
Headwater Groundwater Conservation District	Comm. Jones
Hill Country Youth Event Center	Comm. Harris
Historical Commission	Comm. Holt
Kerr Economic Development Corporation	Comm. Jones/Judge Kelly
MHDD Board	Judge Kelly
SART	Judge Kelly
Upper Guadalupe River Authority	Comm. Jones
Volunteer Fire Departments/KARFA	Comm. Harris
West Kerr Annex	Comm. Harris

COMMISSIONERS' COURT AGENDA REQUEST

**PLEASE FURNISH ONE ORIGINAL AND ONE COPY OF THIS REQUEST AND
DOCUMENTS TO BE REVIEWED BY THE COURT.**

MADE BY: Kellie Early

OFFICE: Kerr County Child
Services Board

MEETING DATE: March 9, 2026

TIME PREFERRED:

SUBJECT: Consider, discuss and take appropriate action on request from Kerr County Child Services Board to place a sign on the courthouse grounds for the month of April for Child Abuse Awareness Month.

EXECUTIVE SESSION REQUESTED:

NAME OF PERSON ADDRESSING THE COURT: Kellie Early

ESTIMATED LENGTH OF PRESENTATION:

IF PERSONNEL MATTER - NAME OF EMPLOYEE:

Time for submitting this request for Court to assure that the matter is posted in accordance with Title 5, Chapter 551 and 552, Government Code, is as follows:

Meeting scheduled for Mondays: 12:00 P.M. previous Monday.

THIS REQUEST RECEIVED BY:

Rene Kelly

THIS REQUEST RECEIVED ON:

Feb 27, 2026 @ *4:00 PM*

All Agenda Requests will be screened by the County Judge's Office to determine if adequate information has been prepared for the Court's formal consideration and action at time of Court Meetings. Your cooperation will be appreciated and contribute towards you request being addressed at the earliest opportunity. See Agenda Request Rules Adopted by Commissioners' Court.

COMMISSIONERS' COURT AGENDA REQUEST

**PLEASE FURNISH ONE ORIGINAL AND ONE COPY OF THIS REQUEST AND
DOCUMENTS TO BE REVIEWED BY THE COURT.**

MADE BY: Dub Thomas

OFFICE: Emergency Management

MEETING DATE: March 9, 2026

TIME PREFERRED:

SUBJECT: Consider, discuss and take appropriate action to approve the Interlocal Agreement Between Hunt Independent School District and Kerr County, Texas for Transportation Services and Short-Term Reunification and Sheltering During an Emergency.

EXECUTIVE SESSION REQUESTED:

NAME OF PERSON ADDRESSING THE COURT: Dub Thomas

ESTIMATED LENGTH OF PRESENTATION:

IF PERSONNEL MATTER - NAME OF EMPLOYEE:

Time for submitting this request for Court to assure that the matter is posted in accordance with Title 5, Chapter 551 and 552, Government Code, is as follows:

Meeting scheduled for Mondays: 12:00 P.M. previous Monday.

THIS REQUEST RECEIVED BY:

Reynolds

THIS REQUEST RECEIVED ON:

March 2, 2026 @ 1:00 PM

All Agenda Requests will be screened by the County Judge's Office to determine if adequate information has been prepared for the Court's formal consideration and action at time of Court Meetings. Your cooperation will be appreciated and contribute towards your request being addressed at the earliest opportunity. See Agenda Request Rules Adopted by Commissioners' Court.

**INTERLOCAL AGREEMENT BETWEEN HUNT INDEPENDENT SCHOOL
DISTRICT AND KERR COUNTY, TEXAS FOR TRANSPORTATION SERVICES AND
SHORT-TERM REUNIFICATION AND SHELTERING DURING AN EMERGENCY**

This Agreement is made by and entered into between HUNT INDEPENDENT SCHOOL DISTRICT ("HISD") and KERR COUNTY, TEXAS ("County") on the 2nd day of March, 2026.

WHEREAS, the Interlocal Cooperation Act, Chapter 791, Texas Government Code authorizes local governments to contract with one another for the performance of governmental functions and services; and

WHEREAS, HISD and County desire to enter into an agreement for the purpose of HISD providing transportation services and short-term reunification and sheltering during an emergency;

NOW THEREFORE, HISD and County do hereby contract, agree, and covenant for good and valuable consideration, the mutual promises and agreements made as follows:

1. Services Provided:

HISD and Kerr County Emergency Management Coordinator shall develop and agree upon procedures by which employees and officials for each party will communicate, coordinate, and implement the actions and responsibilities relating to the performance of this Agreement. The parties agree to conduct an annual evaluation of procedures and amend as necessary to achieve more efficient and effective performance of this Agreement.

HISD:

HISD will provide transportation for individuals seeking transportation within Kerr County and short-term reunification and short-term shelter, not to exceed seven (7) calendar days, for a maximum of 100 Kerr County residents during an emergency. The seven (7) day period may be extended only upon the mutual agreement of HISD and County in writing. HISD will operate the appropriate shelter facilities and arrange for mass feeding and other appropriate support.

HISD will appoint one representative to serve as Liaison with the Kerr County Emergency Management Coordinator to coordinate transportation and short-term sheltering. HISD shall advise County in writing of the identity and contact information for the Liaison.

KERR COUNTY:

County will be responsible for collecting data and identifying individuals who seek transportation, including those individuals with medical needs. The parties understand that County and HISD do not operate a medical shelter and that any persons in need of a medical shelter shall seek refuge at such a facility.

2. **Liability; NO WAIVER OF SOVEREIGN IMMUNITY:** Nothing herein shall be construed as limiting the powers or immunities otherwise held by either party, and this Agreement shall not be construed to create any obligation whereby either party will be required to indemnify the other. Each party agrees to hold the other, and its officers, agents, servants, elected or appointed officials, or employees, harmless of and from all claims, demands, liability, loss, cost, and expense, (including attorney's fees and cost of litigation) in any manner arising out of or resulting from any claim, demand, liability, loss, cost, or expense cause in whole or in part by its own negligence or the negligence of its officers, agents, servants, elected or appointed officials, or employees.
3. **Term and Termination:** The term of this Agreement is one year, commencing on March 2, 2026, and continuing until March 2, 2027. Thereafter, this Agreement shall renew annually, unless terminated as provided herein. Either party may terminate this Agreement at any time by providing written notice of termination to the other party at least sixty (60) days in advance of the effective date of termination.
4. **Notices:** Any notice required or permitted to be given pursuant to this agreement or under the laws of this state shall be given in writing and may be given via the United States Postal Service, or certified mail, addressed to the applicable party at the address set forth below:

County: County Judge
700 Main Street
Kerrville, Texas 78028

HISD: Hunt Independent School District
115 School Road
PO Box 259
Hunt, Texas 78024

5. **Approval of Agreement:** This Agreement will become effective upon execution of this Agreement by both parties, in accordance with Texas law.
6. **Governing Law and Venue:** This Agreement shall be governed by and construed in accordance with the laws of the State of Texas. Venue for any cause of action shall be in a court of competent jurisdiction in Kerr County, Texas.

7. No Third-Party Beneficiaries: Nothing under this Agreement shall be construed to give any rights or benefits in this Agreement to anyone other than County and KISD, and all duties and responsibilities undertaken pursuant to this Agreement will be for the sole and exclusive benefit of County and KISD and not for the benefit of any other party.
8. Assignment: Neither party may assign this Agreement without prior written consent of the other party.
9. Severability: If any provision of this Agreement is invalid or unenforceable, this Agreement shall be considered severable as to such provision, and the remainder of this Agreement shall remain valid and binding as though such invalid or unenforceable provision were not included.
10. Entire Agreement: This Agreement constitutes the entire Agreement between the parties with regard to the GRANT and may not be modified except as agreed by the parties in writing. The parties agree that no representations or warranties shall be binding upon either party unless expressed in writing.
11. THE PARTIES UNDERSTAND THAT THE AGREEMENTS MADE HEREIN WILL BE UNDERTAKEN DURING A TIME OF GRAVE PUBLIC EMERGENCY, THAT THE PARTIES' OBLIGATIONS ARE EXPRESSLY SUBJECT TO ALL ORDERS ISSUED BY A LAWFUL AUTHORITY, THAT VEHICLES AND SHELTERS MAY BE DIVERTED OR DELAYED DEPENDING ON THE CONDITIONS AT THE TIME, AND THAT THE PARTIES CAN ONLY AGREE TO USE THEIR BEST EFFORTS TO FULLFILL THIS AGREEMENT.

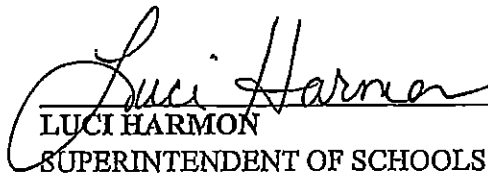
This Agreement may be executed in multiple counterparts, each of which constitutes an original.

EXECUTED BY:

KERR COUNTY, TEXAS

HUNT INDEPENDENT SCHOOL
DISTRICT

ROB KELLY
COUNTY JUDGE



LUCI HARMON
SUPERINTENDENT OF SCHOOLS

ATTEST:

ATTEST:

NADENE ALFORD
INTERIM COUNTY CLERK

ASST. SUPERINTENDENT HUNT ISD

Approved as to Form:

HEATHER STEBBINS
KERR COUNTY ATTORNEY

COMMISSIONERS' COURT AGENDA REQUEST

**PLEASE FURNISH ORIGINAL AND ONE COPY OF THIS REQUEST AND
DOCUMENTS TO BE REVIEWED BY THE COURT.**

MADE BY: Reagan Givens

OFFICE: Animal Control

MEETING DATE: 3/9/26

TIME PREFERRED: ANY

SUBJECT: Consider, discuss and take appropriate action to approve service agreement with veterinarian offices to provide services at multiple locations in Kerr County on Saturday April 11, 2026 from 10AM-2PM. Agreement has been reviewed by County Attorney. (Reagan Givens/Nichole Golden)

EXECUTIVE SESSION REQUESTED:

NAME OF PERSON ADDRESSING THE COURT:

ESTIMATED LENGTH OF PRESENTATION: 3 Minutes

IF PERSONNEL MATTER - NAME OF EMPLOYEE:

Time for submitting this request for Court to assure that the matter is posted in accordance with Title 5, Chapter 551 and 552, Government Code, is as follows:

Meeting scheduled for Mondays: 12:00 P.M. previous Monday.

THIS REQUEST RECEIVED BY:

Reagan Givens

THIS REQUEST RECEIVED ON:

Feb. 27, 2026 @ 4:00 PM

All Agenda Requests will be screened by the County Judge's Office to determine if adequate information has been prepared for the Court's formal consideration and action at time of Court Meetings. Your cooperation will be appreciated and contribute towards your request being addressed at the earliest opportunity. See Agenda Request Rules Adopted by Commissioners' Court.

SERVICE AGREEMENT

This Service Agreement ("Agreement") is entered into by and between **Kerr County**, a political subdivision of the State of Texas ("County"), **Kerrville Pets Alive!**, a non-profit organization, and **The Veterinary Clinic**, a licensed veterinarian in the State of Texas ("Veterinarian"). The County, KPA!, and the Veterinarian may be referred to individually as a "Party" and collectively as the "Parties."

RECITALS

WHEREAS, the County desires to provide its residents with access to low-cost rabies vaccinations for their owned pets in order to promote public health and compliance with state and local rabies control laws; and

WHEREAS, the Veterinarian is duly licensed and qualified to administer rabies vaccinations and provide related veterinary services in the State of Texas; and

WHEREAS, the County wishes to engage the Veterinarian to provide on-site rabies vaccination services during a scheduled vaccination clinic; and

WHEREAS, the Veterinarian is willing to provide such services under the terms and conditions set forth in this Agreement;

NOW, THEREFORE, in consideration of the mutual covenants and agreements contained herein, the Parties agree as follows:

1. PURPOSE

The purpose of this Agreement is to establish the terms under which the Veterinarian will provide rabies vaccination services for pets owned by residents of the County during a scheduled vaccination clinic.

2. TERM OF AGREEMENT

This Agreement shall apply to services performed on **April 11, 2026**, for a total of **four (4) consecutive hours**, from [start time] to [end time], at [location], unless otherwise modified in writing and signed by both Parties.

3. SCOPE OF SERVICES

The Veterinarian shall:

1. Provide on-site rabies vaccinations for dogs and cats owned by County residents.
2. Verify each animal's eligibility for vaccination based on age, health, and safety considerations.
3. Issue rabies vaccination certificates and tags as required by law.
4. Maintain all legally required records of administered vaccinations.

4. COMPENSATION

4.1 County Compensation

The County shall pay the Veterinarian a flat fee of **Four Hundred Dollars (\$400.00)** for four (4) hours of service.

4.2 Resident Fees

Participating county residents shall pay the Veterinarian **Twelve Dollars (\$12.00)** per rabies vaccination administered, except as provided in Section 4.3 below. The County shall not be responsible for payment of any vaccination fees.

4.3 Kerrville Pets Alive Contribution

Kerrville Pets Alive ("KPA") shall pay the Veterinarian for the first one hundred (100) rabies vaccinations administered during the clinic. After the first 100 vaccinations, participating residents shall be responsible for paying the \$12.00 vaccination fee directly to the Veterinarian.

4.4 Invoicing Kerrville Pets Alive

The Veterinarian shall invoice Kerrville Pets Alive ("KPA") for the cost of the first one hundred (100) rabies vaccinations covered under Section 4.3. The invoice shall include the total number of qualifying vaccinations administered, the per-vaccination rate (\$12), and the total amount due. KPA shall remit payment directly to the Veterinarian within **thirty (30) days** of receiving the invoice, unless otherwise agreed in writing by the Veterinarian and KPA.

4.5 Invoicing the County

The Veterinarian shall invoice the County for the flat-fee compensation described in Section 4.1. The invoice shall specify the date of the clinic, the hours worked, and the total amount due. The County shall remit payment to the Veterinarian upon approval of Commissioner's Court, unless otherwise agreed in writing by the Parties.

5. RIGHT TO REFUSE SERVICE

The Veterinarian retains sole professional discretion to refuse vaccination or treatment to any animal deemed:

- Too young to safely receive a rabies vaccination;
- Too unhealthy, medically compromised, or otherwise unfit;
- Aggressive or unsafe to handle; or
- Ineligible for vaccination under applicable veterinary standards.

The County acknowledges and supports the Veterinarian's authority to make such determinations.

6. INDEPENDENT CONTRACTOR STATUS

The Veterinarian is an independent contractor and is not an employee, agent, or representative of the County. Nothing in this Agreement shall be construed to create an employment relationship, partnership, or joint venture.

7. INDEMNIFICATION AND HOLD HARMLESS

The Veterinarian agrees to **indemnify, defend, and hold harmless** the County, its officers, employees, and agents from and against any and all claims, demands, damages, liabilities, losses, costs, or expenses (including reasonable attorney's fees) arising out of or related to:

1. The Veterinarian's performance of services under this Agreement;
2. Any act or omission of the Veterinarian or the Veterinarian's employees, assistants, or agents;
3. Any injury to persons or animals occurring during the provision of services, **except to the extent caused solely by the County's negligence or willful misconduct.**

This provision shall survive the termination or expiration of this Agreement.

8. INSURANCE AND LICENSURE

The Veterinarian represents and warrants that they:

- Hold all required professional licenses in good standing;
- Maintain professional liability insurance in customary amounts for veterinary practice;
- Will provide proof of such insurance to the County upon request.

9. COMPLIANCE WITH LAWS

The Veterinarian shall comply with all applicable federal, state, and local laws, regulations, and professional standards governing veterinary practice and rabies vaccination.

10. TERMINATION

Either Party may terminate this Agreement upon written notice if the other Party materially breaches any term of this Agreement. In the event of termination, the County shall compensate the Veterinarian for services performed up to the effective date of termination.

11. FORCE MAJEURE

Neither Party shall be liable for any failure or delay in performing its obligations under this Agreement if such failure or delay is caused by events beyond the reasonable control of the affected Party, including but not limited to acts of God, natural disasters, severe weather, epidemics, pandemics, war, civil unrest, labor disputes, governmental orders, or any other cause that could not have been prevented through reasonable diligence. The affected Party shall notify the other Party as soon as reasonably practicable of the occurrence of a force majeure event and shall make reasonable efforts to resume performance as soon as the event has concluded.

12. SEVERABILITY

If any provision of this Agreement is held to be invalid, illegal, or unenforceable by a court of competent jurisdiction, such provision shall be severed from the Agreement, and the remaining provisions shall remain in full force and effect. The Parties agree to negotiate in good faith to replace any invalid or unenforceable provision with a valid provision that most closely reflects the original intent of the Parties.

13. NO WAIVER

No failure or delay by either Party in exercising any right, power, or remedy under this Agreement shall operate as a waiver thereof. A waiver shall not be effective unless it is in writing and signed by the Party granting the waiver. A written waiver of any breach shall not be deemed a waiver of any subsequent breach of the same or any other provision.

14. NOTICES

All notices, requests, demands, or other communications required or permitted under this Agreement shall be in writing and shall be deemed properly given when:

- Delivered personally;
- Sent by certified or registered mail, return receipt requested;
- Sent by a nationally recognized overnight courier service;
- Sent by email with confirmation of receipt.

Notices shall be sent to the Parties at the following addresses, or to such other address as a Party may designate in writing:

For the County: Nichole Golden/Shelter Manager Kerr County Animal Control 199 Spur 100, Kerrville, Tx 78028
animal.control@ac.kerrcountytexas.gov / Reagan Givens/Animal Control Director Kerr County Animal Control 199 Spur 100, Kerrville, Tx 78028 animal.control@ac.kerrcountytexas.gov

For KPA!: Karen Guerriero / Executive Director Kerrville Pets Alive! 317 Sidney Baker St. S Suite 400 PMB 345, Kerrville, Tx 78028 info@kerrvillepetsalive.org

For the Veterinarian:

15. ENTIRE AGREEMENT

This Agreement constitutes the entire understanding between the Parties and supersedes all prior oral or written agreements relating to the subject matter herein. Any amendment must be in writing and signed by both Parties.

16. GOVERNING LAW

This Agreement shall be governed by and construed in accordance with the laws of the State of Texas.

17. SIGNATURES

KERR COUNTY

By: _____

Name: _____

Title: _____

Date: _____

KERRVILLE PETS ALIVE

By: _____

Name: _____

Title: _____

Date: _____

THE VETERINARY CLINIC

By: _____

Name: _____

License Number: _____

Date: _____

Rabies Vaccination Liability Waiver and Owner Authorization

Owner/Agent Name: _____

Address: _____

Phone Number: _____

Pet Name(s): _____

Species/Breed: _____

Age: _____ Microchip/Tag (if applicable): _____

1. Authorization for Rabies Vaccination

I, the undersigned owner or authorized agent of the above-named animal(s), hereby request and authorize the administration of a rabies vaccination by the participating veterinarian(s) at this event. I certify that I am the legal owner or have full authority to consent to veterinary services for this animal.

2. Assumption of Risks

I understand that:

- Vaccinations, including rabies vaccines, may carry risks such as allergic reactions, injection-site reactions, or other adverse effects.
- Some animals may experience unexpected or rare complications despite proper handling and administration.
- The participating veterinarians and staff will use reasonable care, but no vaccine or medical procedure is without risk.

By signing below, I voluntarily assume all risks associated with the administration of the rabies vaccine to my animal.

3. Hold Harmless, Release, and Indemnification

In consideration for the rabies vaccination services provided, I agree to the following:

- **I RELEASE, WAIVE, AND HOLD HARMLESS KERR COUNTY, IT'S OFFICERS, EMPLOYEES, VOLUNTEERS, AGENTS, AND ANY PARTICIPATING OR CONTRACTED VETERINARIANS OR VETERINARIAN STAFF FROM ANY AND ALL LIABILITY, CLAIMS, DAMAGES, OR DEMANDS ARISING OUT OF OR RELATED TO THE VACCINATION OF MY ANIMAL.**
- I agree to indemnify and defend Kerr County and participating veterinarians against any claims brought by third parties arising from my animal's behavior, health condition, or reaction to the vaccine.
- This release applies to all known and unknown injuries, damages, or losses that may result from the vaccination.

4. Owner/Agent Acknowledgment

By signing this form, I acknowledge that:

- I have read and understand the information provided above.
- I have had the opportunity to ask questions about the rabies vaccine and its risks.
- I voluntarily consent to the vaccination and accept full responsibility for my animal's health following the procedure.

Owner/Agent Signature: _____

Date: _____

Renuncia de Responsabilidad y Autorización del Propietario para la Vacunación contra la Rabia

Nombre del Propietario/Agente: _____

Dirección: _____

Número de Teléfono: _____

Nombre(s) de la(s) Mascota(s): _____

Especie/Raza: _____

Edad: _____ Microchip/Etiqueta (si aplica): _____

1. Autorización para la Vacunación contra la Rabia

Yo, el propietario o agente autorizado del(los) animal(es) mencionado(s) anteriormente, solicito y autorizo la administración de la vacuna contra la rabia por parte de los veterinarios participantes en este evento. Certifico que soy el propietario legal o que tengo plena autoridad para consentir servicios veterinarios para este animal.

2. Asunción de Riesgos

Entiendo que:

- Las vacunas, incluida la vacuna contra la rabia, pueden conllevar riesgos como reacciones alérgicas, reacciones en el sitio de inyección u otros efectos adversos.
- Algunos animales pueden experimentar complicaciones inesperadas o poco comunes a pesar de un manejo y administración adecuada.
- Los veterinarios y el personal participantes usarán un cuidado razonable, pero ningún procedimiento médico o vacuna está completamente libre de riesgos.

Al firmar a continuación, asumo voluntariamente todos los riesgos asociados con la administración de la vacuna contra la rabia a mi animal.

3. Exoneración, Liberación e Indemnización

En consideración por los servicios de vacunación contra la rabia proporcionados, acepto lo siguiente:

- **LIBERO, RENUNCIO Y EXIMO DE RESPONSABILIDAD AL CONDADO DE KERR, SUS FUNCIONARIOS, EMPLEADOS, VOLUNTARIOS, AGENTES Y A CUALQUIER VETERINARIO PARTICIPANTE O CONTRATADO, ASÍ COMO A SU PERSONAL, DE TODA RESPONSABILIDAD, RECLAMO, DAÑO O DEMANDA QUE SURJA O ESTÉ RELACIONADA CON LA VACUNACIÓN DE MI ANIMAL.**
- Acepto indemnizar y defender al Condado de Kerr y a los veterinarios participantes contra cualquier reclamo presentado por terceros que surja del comportamiento, condición de salud o reacción de mi animal a la vacuna.
- Esta liberación aplica a todas las lesiones, daños o pérdidas conocidas y desconocidas que puedan resultar de la vacunación.

4. Reconocimiento del Propietario/Agente

Al firmar este formulario, reconozco que:

- He leído y entiendo la información proporcionada anteriormente.
- He tenido la oportunidad de hacer preguntas sobre la vacuna contra la rabia y sus riesgos.
- Consiento voluntariamente la vacunación y acepto plena responsabilidad por la salud de mi animal después del procedimiento.

Firma del Propietario/Agente: _____ Fecha: _____

COMMISSIONERS' COURT AGENDA REQUEST

**PLEASE FURNISH ONE ORIGINAL AND TWO COPIES OF THIS REQUEST AND
DOCUMENTS TO BE REVIEWED BY THE COURT.**

MADE BY: Reagan Givens

OFFICE: Animal Control

MEETING DATE: 3/9/2026

TIME PREFERRED: Any

SUBJECT: Consider, discuss and take appropriate action to authorize the Animal Control Director to reduce the annual registration fee to \$0 during the Annual Rabies Vaccination Clinics being held April 11th-April 25th, 2026; Also to advertise by placing sign on Courthouse grounds; Current fees are \$5 (neutered/spayed) and \$10 (non-neutered/spayed) (Reagan Givens)

EXECUTIVE SESSION REQUESTED: (PLEASE STATE REASON)

NAME OF PERSON ADDRESSING THE COURT: Reagan Givens

ESTIMATED LENGTH OF PRESENTATION: 2 Minutes

IF PERSONNEL MATTER - NAME OF EMPLOYEE:

Time for submitting this request for Court to assure that the matter is posted in accordance with Title 5, Chapter 551 and 552, Government Code, is as follows:

Meeting scheduled for Mondays: 5:00 P.M. previous Tuesday.

THIS REQUEST RECEIVED BY:

Paul Kelly

THIS REQUEST RECEIVED ON:

Feb 29, 2026 @ *4:00 PM*

All Agenda Requests will be screened by the County Judge's Office to determine if adequate information has been prepared for the Court's formal consideration and action at time of Court Meetings. Your cooperation will be appreciated and contribute towards you request being addressed at the earliest opportunity. See Agenda Request Rules Adopted by Commissioners' Court.

COMMISSIONERS' COURT AGENDA REQUEST

**PLEASE FURNISH ONE ORIGINAL AND ONE COPY OF THIS REQUEST AND
DOCUMENTS TO BE REVIEWED BY THE COURT.**

MADE BY: Sean Gore

OFFICE: Center Point ISD

MEETING DATE: March 9, 2026

TIME PREFERRED:

SUBJECT: Consider, discuss and take appropriate action to approve the Interlocal Agreement with Center Point Independent School District (CPISD) regarding the use of the Hill Country Youth Event Center (HCYEC) as an evacuation center in case of emergency.

EXECUTIVE SESSION REQUESTED:

NAME OF PERSON ADDRESSING THE COURT: Sean Gore

ESTIMATED LENGTH OF PRESENTATION:

IF PERSONNEL MATTER - NAME OF EMPLOYEE:

Time for submitting this request for Court to assure that the matter is posted in accordance with Title 5, Chapter 551 and 552, Government Code, is as follows:

Meeting scheduled for Mondays: 12:00 P.M. previous Monday.

THIS REQUEST RECEIVED BY:

Pam Kelly

THIS REQUEST RECEIVED ON:

Feb 29, 2026 @ *4:00 PM*

All Agenda Requests will be screened by the County Judge's Office to determine if adequate information has been prepared for the Court's formal consideration and action at time of Court Meetings. Your cooperation will be appreciated and contribute towards your request being addressed at the earliest opportunity. See Agenda Request Rules Adopted by Commissioners' Court.



**Inter -local Agreement between Center Point ISD and Kerr County
regarding using the Hill Country Youth Event Center (HCYEC) as an
evacuation center in case of emergency.**

This Inter -local Agreement ("Agreement ") is made the 25th day of February, 2026 between the Board of Trustees of the Center Point Independent School District, a political subdivision of the State of

Texas, 215 China Street, Center Point, Texas, hereinafter referred to as "CPISD" and Kerr County, a political subdivision of the State of Texas, Kerr County, Kerrville, Texas 78028 hereinafter referred to as "County".

This Agreement constitutes an "inter-local agreement" within the meaning of, and authorized by, the Texas Government Code, Section 791.011.

1.0 General Purpose

1.1 This Agreement is entered into for the express purpose of allowing Center Point Independent School District to use the Kerr County Youth Event Center "Center" as an emergency evacuation site.

1.2 The Center will provide a safe location for students and staff to take shelter.

1.3 The Center will provide a safe location at which students will be reunified with their parents after an emergency has taken place.

1.4 The Center will serve as a location at which emergency counseling services are provided to students, staff, and parents.

1.5 The Center grounds may serve as a media staging location.

2.0 CPISD Responsibilities

2.1 CPISD will activate the evacuation site with a phone call to the Center director.

2.2 CPISD will provide supplies, materials, and personnel to man the various functions of the evacuation site.

2.3 CPISD will ensure the proper care of the Center and provide personnel to clean the Center once use of the facility has concluded.

3.0 County Responsibilities

3.1 County will provide a floor plan of Center to allow CPISD to document planned use of the Center for evacuation and reunification.

3.2 County will provide full access to the Center on a moment's notice for emergency evacuation, and will provide personnel and /or keys to ensure ease of use.

3.3 County will provide primary and secondary contacts to call on in the event of an emergency evacuation to ensure expedient access to the Center.

3.4 County will provide CPISD specific dates on which the Center is not available as an evacuation site each year.

4.0 Indemnification

4.1 Neither party shall be subject to any obligations or liabilities of the other incurred in the performance of this agreement. Nothing herein is intended to alter or amend the immunities applicable to the parties under the law.

5.0 Allocation of Costs

5.1 CPISD will reimburse County for duly documented costs incurred by the county which are associated with an evacuation including, but not limited to, Center personnel, custodial supplies and equipment, electricity, and water usage.

6.0 No Waiver of Immunity

6.1 Nothing in this Agreement waives the immunity enjoyed by the parties under both statutory and common law. No provision of this Agreement is consent to suit.

7.0 Term of the Agreement

7.1 The term of this Agreement shall be for one (1) year beginning March 1, 2026 and continuing through February 28, 2027.

8.0 Amendment

8.1 This Agreement may be amended, as necessary, with the written approval of both parties.

9.0 Termination

9.1 The Contract may be terminated by mutual agreement of the parties, at the end of the then- current year; or by either party if Act of God or operation of law prevents performance of this contract by either party.

10.0 Independent Contractor Relationship

10.1 Nothing contained herein shall be construed as creating the relationship of employer and employee between the parties and each party shall be deemed at all times to be an independent contractor.

11.0 Law Governing Agreement

11.1 This agreement shall be construed under and in accordance with the laws of the State of Texas, and all obligations of the parties created hereunder are performable in Kerr County, Texas.

12.0 Successors and Assigns

12.1 This Agreement shall be binding on both parties and their successors and assigns. Neither CPISD nor County shall assign, sublet or transfer any interest in this Agreement without the prior written consent of the other.

13.0 Notices

13.1 All notices required or permitted hereunder shall be in writing and shall be deemed delivered when actually received, or if earlier, on the third day following deposit in a United States Postal Service post office or receptacle with proper postage affixed certified mail, return receipt requested) addressed to the respective other Party.

14.0 Entire Agreement

14.1 This Agreement merges the prior negotiations and understandings of the Parties hereto and embodies the entire agreement of the Parties, and there are no other agreements, assurances, conditions, covenants (expressed or implied) or other terms with respect to the covenants, whether written or verbal or contemporaneous, with the execution.

EXECUTED at Kerrville, Texas on the _____ day of _____, 2026.

KERR COUNTY

Date of Authorization:

By:

Kerr County Judge

CENTER POINT INDEPENDENT SCHOOL DISTRICT

Date of Authorization:

By:

President, Board Trustees

COMMISSIONERS' COURT AGENDA REQUEST

**PLEASE FURNISH ONE ORIGINAL AND ONE COPY OF THIS REQUEST AND
DOCUMENTS TO BE REVIEWED BY THE COURT.**

MADE BY: Scott Gaige/Noel Putnam

OFFICE: KCSO / Grant Coordinator

MEETING DATE: March 9, 2026

TIME PREFERRED:

SUBJECT: Consider, discuss and take appropriate action to ratify and confirm Resolution regarding the Kimble County-2025 OPSG project grant number 4899304 to the Office of the Governor Operation Stone Garden Solicitation for FY25 through the HS-Homeland Security Grant Program on behalf of the Kerr County Sheriff's Office and rescind court order #41795; previous Resolution did not list the Kerr County Financial Official. (Scott Gaige/Noel Putnam)

EXECUTIVE SESSION REQUESTED:

NAME OF PERSON ADDRESSING THE COURT: Scott Gaige/Noel Putnam

ESTIMATED LENGTH OF PRESENTATION:

IF PERSONNEL MATTER - NAME OF EMPLOYEE:

Time for submitting this request for Court to assure that the matter is posted in accordance with Title 5, Chapter 551 and 552, Government Code, is as follows:

Meeting scheduled for Mondays: 12:00 P.M. previous Monday.

THIS REQUEST RECEIVED BY:



THIS REQUEST RECEIVED ON:

Feb 27, 2026 @ 4:00 PM

All Agenda Requests will be screened by the County Judge's Office to determine if adequate information has been prepared for the Court's formal consideration and action at time of Court Meetings. Your cooperation will be appreciated and contribute towards your request being addressed at the earliest opportunity. See Agenda Request Rules Adopted by Commissioners' Court.

Resolution

WHEREAS, The Kerr County Commissioners' Court finds it in the best interest of the citizens of Kerr County that the Kimble-2025 OPSG project be operated for 2026; and

WHEREAS, The Kerr County Commissioners' Court agrees to provide applicable matching funds for the said project as required by the HS-Homeland Security Grant Program (HSGP); and

WHEREAS, The Kerr County Commissioners' Court agrees that in the event of loss or misuse of the Office of the Governor funds, The Kerr County Commissioners' Court assures that the funds will be returned to the Office of the Governor in full.

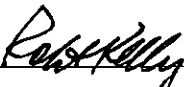
WHEREAS, The Kerr County Commissioners' Court designates the County Judge as the grantee's authorized official. The authorized official is given the power to apply for, accept, reject, alter, or terminate the grant on behalf of the applicant agency.

WHEREAS, The Kerr County Commissioners' Court designates the County Auditor as the grantee's financial official. The financial officer is given the power to submit financial and/or programmatic reports or alter a grant on behalf of the applicant agency.

NOW THEREFORE, BE IT RESOLVED that The Kerr County Commissioners' Court approves submission of the grant application for the Kimble-2025 OPSG project to the Office of the Governor.

Grant Number: 4899304

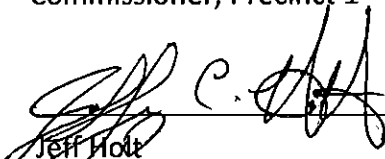
Adopted this 24th day of Feb., 2026



Rob Kelly, County Judge



Tom Jones
Commissioner, Precinct 1



Jeff Holt
Commissioner, Precinct 3



Rich Paces
Commissioner, Precinct 2



Don Harris
Commissioner, Precinct 4

ORDER NO. 41795
ITEM 1.11

OPERATION STONE GARDEN GRANT RESOLUTION

Came to be heard this the 23rd day of February, 2026, with a motion made by Commissioner Harris seconded by Commissioner Paces the court unanimously approved by a vote of 5-0-0 to approve the resolution regarding the Kimble County-2025 OPSG project grant number 4899304 to the Office of the Governor Operation Stone Garden Solicitation for FY25 through the HS-Homeland Security Grant Program on behalf of the Kerr County Sheriff's Office.

APPROVE THE RESOLUTION REGARDING THE KIMBLE COUNTY-2025 OPSG PROJECT GRANT NUMBER 4899304 TO THE OFFICE OF THE GOVERNOR OPERATION STONE GARDEN SOLICITATION FOR FY25 THROUGH THE HS-HOMELAND SECURITY GRANT PROGRAM ON BEHALF OF THE KERR COUNTY SHERIFF'S OFFICE.

COMMISSIONERS' COURT AGENDA REQUEST

**PLEASE FURNISH ONE ORIGINAL AND ONE COPY OF THIS REQUEST AND
DOCUMENTS TO BE REVIEWED BY THE COURT.**

MADE BY: Judge Kelly

OFFICE: County Judge

MEETING DATE: March 9, 2026

TIME PREFERRED:

SUBJECT: Consider, discuss and take appropriate action to appoint a member of commissioners' court or designate a person to perform investigation under Section 751.005 of the Texas Health and Safety Code for the purpose of determining if the minimum standards for ensuring public safety and order as prescribed by law will be maintained under the application for permit for Easterfest being held on April 4, 2026. Hearing on Mass Gathering Permit has been set for March 23, 2026 at 8:30 AM in the Kerr County Commissioners' Courtroom.

EXECUTIVE SESSION REQUESTED:

NAME OF PERSON ADDRESSING THE COURT: Judge Kelly

ESTIMATED LENGTH OF PRESENTATION:

IF PERSONNEL MATTER - NAME OF EMPLOYEE:

Time for submitting this request for Court to assure that the matter is posted in accordance with Title 5, Chapter 551 and 552, Government Code, is as follows:

Meeting scheduled for Mondays: 12:00 P.M. previous Monday.

THIS REQUEST RECEIVED BY:

Reba Kelly

THIS REQUEST RECEIVED ON:

Feb 29, 2026 @ *4:00 PM*

All Agenda Requests will be screened by the County Judge's Office to determine if adequate information has been prepared for the Court's formal consideration and action at time of Court Meetings. Your cooperation will be appreciated and contribute towards your request being addressed at the earliest opportunity. See Agenda Request Rules Adopted by Commissioners' Court.

COMMISSIONERS' COURT AGENDA REQUEST

**PLEASE FURNISH ONE ORIGINAL AND ONE COPY OF THIS REQUEST AND
DOCUMENTS TO BE REVIEWED BY THE COURT.**

MADE BY: Judge Kelly

OFFICE: County Judge

MEETING DATE: March 9, 2026

TIME PREFERRED:

SUBJECT: Consider, discuss and take appropriate action to appoint a member of commissioners' court or designate a person to perform investigation under Section 751.005 of the Texas Health and Safety Code for the purpose of determining if the minimum standards for ensuring public safety and order as prescribed by law will be maintained under the application for permit for Gary Sinise Foundation concert being held on April 18, 2026. Hearing on Mass Gathering Permit has been set for March 23, 2026 at 8:30 AM in the Kerr County Commissioners' Courtroom

EXECUTIVE SESSION REQUESTED:

NAME OF PERSON ADDRESSING THE COURT: Judge Kelly

ESTIMATED LENGTH OF PRESENTATION:

IF PERSONNEL MATTER - NAME OF EMPLOYEE:

Time for submitting this request for Court to assure that the matter is posted in accordance with Title 5, Chapter 551 and 552, Government Code, is as follows:

Meeting scheduled for Mondays: 12:00 P.M. previous Monday.

THIS REQUEST RECEIVED BY:

Randy Kelly

THIS REQUEST RECEIVED ON:

Feb 29, 2026 @ *4:06 PM*

All Agenda Requests will be screened by the County Judge's Office to determine if adequate information has been prepared for the Court's formal consideration and action at time of Court Meetings. Your cooperation will be appreciated and contribute towards your request being addressed at the earliest opportunity. See Agenda Request Rules Adopted by Commissioners' Court.

COMMISSIONERS' COURT AGENDA REQUEST

**PLEASE FURNISH ONE ORIGINAL AND FOUR COPIES OF THIS REQUEST AND
DOCUMENTS TO BE REVIEWED BY THE COURT.**

MADE BY: Sheriff Larry L. Leitha, Jr.

OFFICE: Kerr County Sheriff's Office

MEETING DATE: March 9 2026

TIME PREFERRED:

SUBJECT:

Consider, discuss and take appropriate action to approve the Interlocal Agreement between Kerr County and San Saba County for Jail Services and for the County Sheriff and County Judge to sign the same.

EXECUTIVE SESSION REQUESTED: (PLEASE STATE REASON)

NAME OF PERSON ADDRESSING THE COURT: Sheriff Larry L. Leitha, Jr.

ESTIMATED LENGTH OF PRESENTATION:

IF PERSONNEL MATTER - NAME OF EMPLOYEE:

Time for submitting this request for Court to assure that the matter is posted in accordance with Title 5, Chapter 551 and 552, Government Code, is as follows:

Meeting scheduled for Mondays: 12:00 P.M. previous Wednesday.

THIS REQUEST RECEIVED BY:

Paul Kelly

THIS REQUEST RECEIVED ON:

2/26/2026 @ *1:20 PM*

All Agenda Requests will be screened by the County Judge's Office to determine if adequate information has been prepared for the Court's formal consideration and action at time of Court Meetings. Your cooperation will be appreciated and contribute towards your request being addressed at the earliest opportunity. See Agenda Request Rules Adopted by Commissioners' Court.

STATE OF TEXAS
COUNTY OF KERR

§
§
§

**INTERLOCAL COOPERATION AGREEMENT
BETWEEN KERR COUNTY AND SAN SABA COUNTY
FOR JAIL SERVICES**

This Inter-local Agreement is entered into by and between **KERR** County, Texas, a body corporate and politic under the laws of the State of Texas, acting by and through its Commissioners Court, hereinafter referred to as "**KERR**," and **SAN SABA** County, Texas, a body corporate and politic under the laws of the State of Texas, acting by and through its Commissioners Court, hereinafter referred to as "**SAN SABA**."

WITNESSETH

WHEREAS, TEXAS GOVERNMENT CODE, Chapter 791, authorized local governments of the state to enter into contracts for governmental functions and services to increase their efficiency and effectiveness; and

WHEREAS, such a consolidated effort for the housing and care of certain incarcerated inmates are in each party's best interest and that of the public and this agreement will increase the effective and efficient functioning of each party; and

WHEREAS, **KERR** and **SAN SABA** are local governments as defined in the TEXAS GOVERNMENT CODE, Section 791.003(4), have the authority to enter into this agreement, and have each entered into this agreement by the action of its governing body in the appropriate manner prescribed by law; and

WHEREAS, **KERR** and **SAN SABA** specify that each party paying for the performance of said functions of government shall make those payments from current revenues available to the paying party;

NOW THEREFORE, in consideration of the premises, and of the terms, provisions, and mutual promises herein contained which fairly compensate the performing party, it is mutually agreed as follows:

ARTICLE I
TERM AND EFFECTIVE DATE

1. **TERM**: This Agreement shall be effective beginning October 1, 2025, and shall be effective through September 30, 2026.

2. **RENEWAL**: This Agreement shall automatically renew for additional one-year period on October 1st of each subsequent year with mutually agreed upon increases, unless this Agreement is terminated or notice of termination is given. **KERR** shall provide sixty (60) days' notice of any change to the per diem rate for detention services for subsequent terms.

3. **TERMINATION:**

A. This Agreement may be terminated without cause at any time at the option of either **KERR** or **SAN SABA** upon the giving of sixty (60) days written notice to the other party in the manner and form provided for herein.

The Notice is effective if sent by either the County Judge or the Sheriff. The termination of the Agreement will be effective upon the last day of the month in which the expiration of the sixty (60) day period occurs.

B. This Agreement is also subject to termination upon the occurrence of an event that renders performance hereunder by **KERR** impracticable or impossible, such as severe damage or destruction of **KERR's** facility or actions by governmental or judicial entities which create a legal barrier to the acceptance of any of **SAN SABA** inmates.

ARTICLE II **DETENTION SERVICES**

For the purposes and consideration herein stated and contemplated, **KERR** shall provide the following necessary and appropriate services for **SAN SABA** to the maximum extent authorized by this Agreement, without regard to race, religion, color, age, sex, or national origin; to-wit:

1. **PURPOSE:** **KERR** shall provide housing and food to inmates presented by **SAN SABA** who meet the following minimum criteria (as determined by the **KERR** County Sheriff or his designee):

- A. Inmate must be at least 17 years of age;
- B. Inmate must be of good general health; and
- C. Inmate with serious institutional behavior history (as defined by the **KERR** disciplinary plan approved by the Texas Commission on Jail Standards) in the last 90 days may not be accepted.

2. **HOUSING AND CARE OF INMATES:** **KERR** will confine inmates and give them reasonable and humane care and treatment, consistent with the Texas Commission on Jail Standards and other express provisions in this Agreement. **KERR** will provide, as set out herein, for inmate's physical needs, retain them in safe custody, supervise them, maintain proper discipline and control, make certain inmates receive no privileges except those generally afforded other inmates and that the judgments and orders of the committing court and Board of Parole and Post- Prison Supervision are faithfully executed.

3. **MEDICAL SERVICES:** The per-day rate under this Agreement covers only routine medical services such as on-site sick call (when provided by **KERR** or contracted on-site staff) and non-prescription, over-the-counter/non-legend and routine drugs and medical supplies. The per-day rate does not cover medical health care services provided outside of **KERR's** facility or by other than **KERR** facility staff, prescription drugs and treatment, or surgical, optic and dental care, and does not include the costs associated with the hospitalization of any inmate. **SAN SABA** shall reimburse **KERR** the amount spent for medical services of all **SAN SABA** inmates, other than routine medical services included in the per-day rate.

4. **OFF-SITE SERVICES:** **SAN SABA** County Sheriff or designee shall be informed of any **SAN SABA** inmates receiving emergency medical care, including but not limited to hospitalizations, that results in off-site services as soon as practicable after the service occurs (not more than 1 working day). **KERR** will assist **SAN SABA** to monitor utilization of off-site services by providing information about

the course of an inmate's care and treatment. **SAN SABA** may elect to retake and return to **SAN SABA** physical custody of an inmate to manage costs and utilization of services unless emergency care of the inmate is required.

5. OFF-SITE BILLING: This Agreement provides **KERR** with the authority to arrange for the off-site provider to bill **SAN SABA** for the costs of hospitalization and/or medical care for any **SAN SABA** inmate. In the event direct billing is unavailable **SAN SABA** shall reimburse **KERR** in accordance with the terms of this Agreement.

6. MEDICAL RECORDS: **SAN SABA** agrees to provide **KERR** with a copy of each inmate's medical, dental and mental health record(s) for the purposes of continuity of care. **KERR** agrees to maintain a confidential record of the health care of each inmate. **SAN SABA** shall ensure that these records are provided no less than 24 hours prior to the inmate's arrival at the **KERR** County Jail. A copy of each inmate's record shall be returned to **SAN SABA** at the time each **SAN SABA** inmate is returned.

7. MEDICAL INVOICES: **SAN SABA** shall reimburse **KERR** monthly for health care services and associated expenses for which **SAN SABA** is responsible under this section. **KERR** shall provide **SAN SABA** with invoices for such costs and agrees not to add additional administrative charges for reimbursed costs.

8. INMATE MEDICAL REPORT: Upon request from **SAN SABA**, **KERR** will provide an inmate's report of health care provided.

9. FACILITY INSPECTION: **KERR** agrees to allow periodic inspections of the facilities by **SAN SABA** law enforcement personnel. The reports of state or federal inspections of the facilities will be provided to **SAN SABA** upon request.

10. TRANSPORTATION AND OFF-SITE SECURITY: **SAN SABA** is solely responsible for the transportation of inmates between the **KERR** County Jail and the **SAN SABA** Facility. **KERR** agrees to provide ambulance and other transportation for **SAN SABA** inmates to and from local off-site medical facilities and will invoice **SAN SABA** in accordance with Article 2, Section 7.

11. COURT APPEARANCES: **SAN SABA** shall be responsible for the transportation of **SAN SABA** inmates to/from **KERR** County Jail. **SAN SABA** will be responsible for the transportation of inmates for all court proceedings and hearings and during court appearances in **SAN SABA** County.

12. TRANSPORTATION TO TDCJ: **SAN SABA** is responsible for the transport of **SAN SABA** inmates to the Texas Department of Criminal Justice Institutional Division.

13. GUARD SERVICE: **KERR** will provide guard services as requested or required by the circumstances, or the law for inmates admitted or committed to an off-site medical facility at the rate of \$35 per hour/per guard (minimum 2 guards per transport). **KERR** shall provide **SAN SABA** with invoices for such costs and agrees not to add additional administrative charges for reimbursed costs.

14. SPECIAL PROGRAMS: The per day rate set out in this Agreement covers basic custodial care and supervision and does not include special educational, vocational or other programs provided to inmates in **KERR**'s facilities. The parties may contract by written agreement for the provision of special programs.

15. LOCATION AND OPERATION OF FACILITY: KERR shall provide the detention services described herein at the KERR County Jail located in KERRVILLE, Texas.

16. ADMITTING AND RELEASING: SAN SABA shall provide inmate biographical information and charge information for each inmate no less than 24 hours prior to the inmate's arrival at the KERR County Jail. KERR shall be responsible for the admitting and releasing of inmates placed in KERR's facility. KERR will maintain records of all such transactions in a manner agreed upon by KERR and SAN SABA, and provide such records to SAN SABA upon request.

17. RETURN OF INMATES TO SAN SABA: Upon demand by SAN SABA, KERR will relinquish to SAN SABA physical custody of any inmate. Upon request by KERR, SAN SABA will resume custody of any inmate so requested within two (2) calendar days, or unless a different time is agreed upon by both parties.

ARTICLE III **FINANCIAL PROVISIONS**

1. PER DIEM RATE: The per diem rate for detention services under this Agreement is one-hundred dollars (\$100.00) per man-day, subject to Article 1, Section 2 of this Agreement. This rate covers one inmate per day. A portion of any day will count as a man-day under this agreement.

Notwithstanding the foregoing, it is understood that SAN SABA, that is paying for performance of governmental functions or services must make those payments from current revenues available. In the event of a non-appropriation by SAN SABA, KERR shall be relieved of its responsibilities hereunder as of the first day of the fiscal year of such non-appropriation. All payments must be in an amount that fairly compensates KERR for the services or functions performed under this agreement.

2. BILLING PROCEDURE: KERR shall submit an itemized invoice for the services provided each month to SAN SABA. Such invoice will include a list of each of the inmates housed and the number of calendar days per inmate. Invoices will be submitted to the officer designated to receive the same on behalf of SAN SABA. SAN SABA will make payment to KERR within thirty (30) calendar days after receipt of the invoice. Payment will be in the name of KERR County, Texas and will be remitted to:

Kerr County Treasurer
700 Main Street
Kerrville, TX 78028

ARTICLE IV
ACCEPTANCE OF INMATES

- 1. COMPLIANCE WITH LAW:** KERR warrants that it will comply with all federal and state laws and with the requirements of the Texas Commission on Jail Standards while housing SAN SABA inmates under this Agreement. Nothing herein will create any obligation upon KERR to house SAN SABA inmates where the housing of said SAN SABA inmates will, in the opinion of KERR Sheriff, raise the population of the facility above the permissible number of inmates allowed by law, or will, in the KERR County Sheriff's opinion, create a condition of overcrowding or create conditions which endanger the life and/or welfare of personnel and inmates at the facility, or result in possible violation of the constitutional rights of inmates housed at the facility. At any time that KERR Sheriff determines that a condition exists at KERR's facility necessitating the removal of SAN SABA inmates, or any specified number thereof, SAN SABA shall, upon notice by KERR Sheriff to SAN SABA Sheriff, immediately remove said inmates from the facility. SAN SABA will make every effort to remove any inmate within eight (8) hours of notice from KERR.
- 2. ELIGIBILITY FOR INCARCERATION AT THE FACILITY:** SAN SABA inmates incarcerated in this facility must meet requirements of this Agreement and the State standards under both the Jail Commission approved custody assessment system in place at the SAN SABA jail and pursuant to the custody assessment system in place at KERR's facility. KERR reserves the right to review the inmate's classification/eligibility, and the right to refuse to accept any inmate that it does not believe to be properly classified as a non-high risk inmate. Furthermore, if an inmate's classification changes while incarcerated at KERR's facility, KERR reserves the right to demand that SAN SABA remove that inmate and, if possible, replace said inmate with an appropriate inmate of SAN SABA.
- 3. RESERVATION WITH REGARD TO ACCEPTANCE OR CONTINUED INCARCERATION OF INDIVIDUAL INMATES:** KERR reserves the right for its Sheriff or his designated representative to review the background of all inmates sought to be transferred to KERR facility, and SAN SABA shall cooperate with and provide information requested regarding any inmate by KERR Sheriff. KERR reserves the right to refuse acceptance of any inmate of SAN SABA. Likewise, if any SAN SABA inmate's behavior, medical or psychological condition, or other circumstance of reasonable concern to KERR Sheriff makes the inmate unacceptable for continued incarceration in KERR's facility in the opinion of KERR Sheriff, SAN SABA will be requested to remove said inmate from KERR's facility, and will do so, if reasonably possible, within eight (8) hours upon the request of KERR Sheriff. Inmates may also be required to be removed from KERR's facility when their classification changes for any purpose, including long-term medical segregation.
- 4. INMATE SENTENCES:** KERR will not be in charge or responsible for the computation or processing of inmates' time of confinement, including, but not limited to, computation of good time awards/credits and discharge dates. KERR will provide information that may be required regarding the inmates' behavior and performance; however, all such computations and record keeping will continue to be the responsibility of SAN SABA. It will be the responsibility of SAN SABA to notify KERR of any discharge date for an inmate at least two (2) calendar days before such date unless notification was not reasonably possible. KERR will release inmates of SAN SABA only when such release is specifically requested in writing by SAN SABA Sheriff. However, it is agreed that the preferred and usual course of dealing between the parties shall be for KERR to return inmates to the SAN SABA Jail shortly before the discharge date and for SAN SABA to discharge the inmate from the SAN SABA Jail. SAN SABA accepts all responsibility for the calculations and determinations set forth above and for providing KERR notice of the same, and to the extent allowed by law, shall indemnify

and hold harmless **KERR** from all liability or expenses of any kind arising there from. **SAN SABA** is responsible for all paperwork and arrangements for inmates to be transferred to the Texas Department of Criminal Justice Institutional Division.

5. BONDING / RELEASE: All inmates held for **SAN SABA** will be required to bond in **SAN SABA** County. **SAN SABA** County will then send **KERR** a TTY stating that the inmate has been bonded and **SAN SABA** will transport back to their facility for release.

ARTICLE V **MISCELLANEOUS**

1. BINDING NATURE OF AGREEMENT: This Agreement is contractual and is binding upon the parties hereto and their successors, assigns and representatives.

2. NOTICE: All notices, demands, or other writings may be delivered by either party hereto to the other by United States Mail or other reliable courier at the following address:

To KERR:
KERR County
Rob Kelly, County Judge
700 Main Street
Kerrville, TX 78028

Copy To:
Sheriff Larry L. Leitha, Jr.
400 Clearwater Paseo
Kerrville, TX 78028

To SAN SABA:
SAN SABA County
Jody Fauley, County Judge
500 E. Wallace, Suite 201
San Saba, TX 76877

Copy To:
Sheriff David Jenkins
500 E. Wallace, Suite 206
San Saba, TX 76877

The address to which any notice, demand, or other writing may be delivered to any party as above provided may be changed by written notice given by such party as above provided.

3. AMENDMENTS: This Agreement will not be modified or amended except by a written instrument executed by the duly authorized representatives of both parties and approved by the commissioner's courts of the respective parties hereto.

4. PRIOR AGREEMENTS: This Agreement contains all of the agreements and undertakings, either oral or written, of the parties with respect to any matter mentioned herein. No prior agreement or understanding pertaining to any such matter shall be effective.

5. REPRESENTATION: Each party understands and agrees that each party, its employees, servants, agents, and representatives shall at no time represent themselves to be employees, Servants, agents, and/or representative of the other party.

6. INDEPENDENT RELATIONSHIP: Each party shall have and retain the exclusive right of control over its employees and contractors assigned to perform services under this Agreement in accordance with the applicable laws of the State of Texas. Neither party has the authority to bind nor otherwise obligate the other orally, in writing or by any act or omission. Nothing contained herein shall establish an agency, employee-employer relationship, partnership, joint enterprise, joint employer, or joint venture relationship by or between the parties.

7. SEVERABILITY: If any provision of this agreement is found by a court of competent Jurisdiction to be illegal, invalid, or unenforceable, the remainder of this Agreement will not be affected, and in lieu of each provision which is found to be illegal, invalid, or unenforceable, there will be added as part of this Agreement a provision as similar to such illegal, invalid, or unenforceable provision as may be possible and be legal, valid, and enforceable.

8. LIABILITY: This agreement is made for the express purpose of providing detention services, which both parties recognize to be a governmental function. Except as hereinafter provided neither party assumes any liability beyond that required by law. Each party understands and agrees that it is responsible only for the acts, errors, or omissions of its employees and contractors. This Agreement is not intended to create any cause of action for the benefit of third parties.

9. APPROVALS: This Agreement must be approved by the governing bodies of both parties in accordance with the Texas Inter-Local Cooperation Act.

ARTICLE VI
EXECUTION

In Testimony and Witness of which this Agreement has been executed in duplicate originals as follows:

KERR COUNTY, TEXAS:

ROB KELLY, KERR COUNTY JUDGE

ATTEST:

Date: _____

NADENE ALFORD, KERR COUNTY CLERK

REVIEWED:

LARRY L. LEITHA, JR., KERR COUNTY SHERIFF

Date: _____

SAN SABA COUNTY, TEXAS:

JODY FAULEY, SAN SABA COUNTY JUDGE

ATTEST:

Date: June 23, 2025

CHRISTI WHITLEY, SAN SABA COUNTY CLERK

DAVID JENKINS, SAN SABA COUNTY SHERIFF

Date: 6/23/2025

COMMISSIONERS' COURT AGENDA REQUEST

**PLEASE FURNISH ONE ORIGINAL AND ONE COPY OF THIS REQUEST AND
DOCUMENTS TO BE REVIEWED BY THE COURT.**

MADE BY: Comm. Jones

OFFICE: County Commissioner

MEETING DATE: March 9, 2026

TIME PREFERRED:

SUBJECT: Consider, discuss, and take appropriate action to hire Bob A. Moran, ATA to appraise 500 Hays Street, 434 Earl Garrett Street, and 600 Earl Garrett Street, all located in Kerrville, Kerr County, Texas.

EXECUTIVE SESSION REQUESTED:

NAME OF PERSON ADDRESSING THE COURT: Comm. Jones/Heather Stebbins/Bob Reeves

ESTIMATED LENGTH OF PRESENTATION:

IF PERSONNEL MATTER - NAME OF EMPLOYEE:

Time for submitting this request for Court to assure that the matter is posted in accordance with Title 5, Chapter 551 and 552, Government Code, is as follows:

Meeting scheduled for Mondays: 12:00 P.M. previous Monday.

THIS REQUEST APPROVED BY:

_____

THIS REQUEST RECEIVED ON:

_____ @ _____

All Agenda Requests will be screened by the County Judge's Office to determine if adequate information has been prepared for the Court's formal consideration and action at time of Court Meetings. Your cooperation will be appreciated and contribute towards your request being addressed at the earliest opportunity. See Agenda Request Rules Adopted by Commissioners' Court.

COMMISSIONERS' COURT AGENDA REQUEST

**PLEASE FURNISH ONE ORIGINAL AND ONE COPY OF THIS REQUEST AND
DOCUMENTS TO BE REVIEWED BY THE COURT.**

MADE BY: Comm. Paces

OFFICE: County Commissioner

MEETING DATE: March 9, 2026

TIME PREFERRED:

SUBJECT: Consider, discuss and take appropriate action on request to appoint two members of the court to attend the Kerr Together Long-Term Recovery Group Board Meetings on the 1st and 3rd Tuesdays of every month.

EXECUTIVE SESSION REQUESTED:

NAME OF PERSON ADDRESSING THE COURT: Comm. Paces, Pct. 2

ESTIMATED LENGTH OF PRESENTATION:

IF PERSONNEL MATTER - NAME OF EMPLOYEE:

Time for submitting this request for Court to assure that the matter is posted in accordance with Title 5, Chapter 551 and 552, Government Code, is as follows:

Meeting scheduled for Mondays: 12:00 P.M. previous Monday.

THIS REQUEST RECEIVED BY:

_____

THIS REQUEST RECEIVED ON:

_____ @ _____

All Agenda Requests will be screened by the County Judge's Office to determine if adequate information has been prepared for the Court's formal consideration and action at time of Court Meetings. Your cooperation will be appreciated and contribute towards your request being addressed at the earliest opportunity. See Agenda Request Rules Adopted by Commissioners' Court.

COMMISSIONERS' COURT AGENDA REQUEST

**PLEASE FURNISH ONE ORIGINAL AND ONE COPY OF THIS REQUEST AND
DOCUMENTS TO BE REVIEWED BY THE COURT.**

MADE BY: Comm. Paces

OFFICE: County Commissioner

MEETING DATE: March 9, 2026

TIME PREFERRED:

SUBJECT: Consider and discuss update on matters related to the HCESRPC (Hill Country Energy Sub-Regional Planning Commission).

EXECUTIVE SESSION REQUESTED:

NAME OF PERSON ADDRESSING THE COURT: Comm. Paces, Pct. 2

ESTIMATED LENGTH OF PRESENTATION:

IF PERSONNEL MATTER - NAME OF EMPLOYEE:

Time for submitting this request for Court to assure that the matter is posted in accordance with Title 5, Chapter 551 and 552, Government Code, is as follows:

Meeting scheduled for Mondays: 12:00 P.M. previous Monday.

THIS REQUEST RECEIVED BY:

_____

THIS REQUEST RECEIVED ON:

_____ @ _____

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COMMISSIONERS' COURT AGENDA REQUEST

**PLEASE FURNISH ONE ORIGINAL AND ONE COPY OF THIS REQUEST AND
DOCUMENTS TO BE REVIEWED BY THE COURT.**

MADE BY: Comm. Paces

OFFICE: County Commissioner

MEETING DATE: March 9, 2026

TIME PREFERRED:

SUBJECT: Consider, discuss and take appropriate action regarding contracting for a part-time fire marshal as was approved with Court Order #41793.

EXECUTIVE SESSION REQUESTED:

NAME OF PERSON ADDRESSING THE COURT: Comm. Paces, Pct. 2

ESTIMATED LENGTH OF PRESENTATION:

IF PERSONNEL MATTER - NAME OF EMPLOYEE:

Time for submitting this request for Court to assure that the matter is posted in accordance with Title 5, Chapter 551 and 552, Government Code, is as follows:

Meeting scheduled for Mondays: 12:00 P.M. previous Monday.

THIS REQUEST RECEIVED BY:

THIS REQUEST RECEIVED ON:

_____ @ _____

All Agenda Requests will be screened by the County Judge's Office to determine if adequate information has been prepared for the Court's formal consideration and action at time of Court Meetings. Your cooperation will be appreciated and contribute towards your request being addressed at the earliest opportunity. See Agenda Request Rules Adopted by Commissioners' Court.

ORDER NO. 41793
ITEM 1.16

PART-TIME FIRE MARSHAL AND FEE SCHEDULE

Came to be heard this the 23rd day of February, 2026, with a motion made by Commissioner Paces seconded by Judge Kelly the court unanimously approved by a vote of 5-0-0 to contract for a part-time fire marshal for Kerr County and to adopt a fire marshal permit and fee schedule for the same, similar to schedule used by Kendall County; funds to pay for part-time marshal to come from professional services.

APPROVE CONTRACTING FOR A PART-TIME FIRE MARSHAL FOR KERR COUNTY AND TO ADOPT A FIRE MARSHAL PERMIT AND FEE SCHEDULE FOR THE SAME, SIMILAR TO SCHEDULE USED BY KENDALL COUNTY; FUNDS TO PAY FOR PART-TIME MARSHAL TO COME FROM PROFESSIONAL SERVICES.

COMMISSIONERS' COURT AGENDA REQUEST

**PLEASE FURNISH ONE ORIGINAL AND ONE COPY OF THIS REQUEST AND
DOCUMENTS TO BE REVIEWED BY THE COURT.**

MADE BY: Comm. Paces

OFFICE: County Commissioner

MEETING DATE: March 9, 2026

TIME PREFERRED:

SUBJECT: Consider, discuss and take appropriate action to finalize the Fee Schedule to be used by part-time Fire Marshal that was approved in Court Order #41793.

EXECUTIVE SESSION REQUESTED:

NAME OF PERSON ADDRESSING THE COURT: Comm. Paces, Pct. 2

ESTIMATED LENGTH OF PRESENTATION:

IF PERSONNEL MATTER - NAME OF EMPLOYEE:

Time for submitting this request for Court to assure that the matter is posted in accordance with Title 5, Chapter 551 and 552, Government Code, is as follows:

Meeting scheduled for Mondays: 12:00 P.M. previous Monday.

THIS REQUEST RECEIVED BY:

THIS REQUEST RECEIVED ON:

_____ @ _____

All Agenda Requests will be screened by the County Judge's Office to determine if adequate information has been prepared for the Court's formal consideration and action at time of Court Meetings. Your cooperation will be appreciated and contribute towards your request being addressed at the earliest opportunity. See Agenda Request Rules Adopted by Commissioners' Court.

ORDER NO. 41793
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APPROVE CONTRACTING FOR A PART-TIME FIRE MARSHAL FOR KERR COUNTY AND TO ADOPT A FIRE MARSHAL PERMIT AND FEE SCHEDULE FOR THE SAME, SIMILAR TO SCHEDULE USED BY KENDALL COUNTY; FUNDS TO PAY FOR PART-TIME MARSHAL TO COME FROM PROFESSIONAL SERVICES.

Fee Schedule

This fee is for processing building plans submitted for approval, and will be paid at the time of submission of the plans.

The base fee for all submitted plans and specifications is \$50.00.

Projects with a valuation over \$1,000.00 will use the following table:

Project Valuation	
\$1,000.00 and less	\$50.00
\$1,001.00 up to \$50,000.00	\$50.00 for the first \$1,001.00 plus \$7.00 for each additional thousand or fraction thereof.
\$50,001.00 up to \$100,000.00	\$393.00 for the first \$50,001.00 plus \$6.00 for each additional thousand or fraction thereof.
\$100,001.00 up to \$350,000.00	\$687.00 for the first \$100,001.00 plus \$5.00 for each additional thousand or fraction thereof.
\$350,001.00 up to \$700,000.00	\$1,888.00 for the first \$350,001.00 plus \$4.00 for each additional thousand or fraction thereof.
\$700,001.00 up to \$1,000,000.00	\$3,284.00 for the first \$700,001.00 plus \$3.00 for each additional thousand or fraction thereof.
\$1,000,001.00 and up	\$4,181.00 for the first \$1,000,001.00 plus \$2.00 for each additional thousand or fraction thereof.

Change of Use or Substantial Improvement (with structural modifications) Same as above.

This fee covers the review of structural modification and/or interior finish-out plans and issuing the permit to modify an existing structure from one occupancy classification to another in order to ensure the building and new occupancy usage complies with adopted Fire Codes. Includes the associated inspections and issuing a Certificate of Occupancy.

Failure to Obtain Required Permit Double original permit fee

This fee will be assessed by the Fire Marshal, when a Notice of Violation has been issued, for performing construction or system installation work without first obtaining appropriate permits as required by Section 108.4 of the adopted Fire Codes and Commissioner's Court Order.

Change of Occupancy Use Inspection \$150.00

This fee covers the required inspection necessary to ensure compliance with the adopted Fire Code, and issuance of a new Certificate of Occupancy for an occupancy area that has changed from one occupancy/business use to a new occupancy/use.

The following fees apply when they are not part of the original project valuation

Preliminary Plan Review \$125.00

Charge for a preliminary review of the plans, which have not been submitted for approval for which no permit has been issued.

Taxing Entity Building Permit Fee

The fee for processing building plans submitted for approval by a Taxing entity authorized to impose taxes within and upon residents of Kerr County, Texas, are 50% of the fee schedule. Taxing Entities for purposed of the Kerr County Fire Code are defined to include school districts, emergency service districts, municipalities, or other entities authorized by the state or federal statute to levy tax within and upon residents of Kerr County, Texas, for the purpose of yielding revenue to serve legitimate public purpose for the benefit of Kerr County tax payers.

Systems Permits and Fees

Alternative Fire Protection System \$300.00

This fee covers reviewing plans, conducting rough-in inspections and witnessing the acceptance testing of alternative fire protection and fire suppression systems.

The following are fees that require fire inspections as per the Fire Codes.

Fire Alarm System \$250.00+

This fee covers reviewing plans, conducting rough-in-inspection and witnessing fire alarm acceptance testing. The fee is \$250.00 plus \$.50 per initiating and/or alarm signaling device over 10.

Fire Sprinkler System \$250.00+

This fee covers reviewing plans, conducting rough-in-inspection and witnessing the 2 hour hydrostatic testing of the fire sprinkler system. The fee is \$250.00 plus \$.50 per sprinkler head over 35.

Paint/Spray Booth System \$250.00

This fee covers reviewing plans, witnessing the testing and inspection of commercial paint/spray booth fire suppression systems.

Smoke Control System \$250.00

This fee covers reviewing plans and witnessing the testing of building smoke control system (including fire dampers, smoke dampers, fire/smoke dampers and duct smoke detectors) required by the Fire Code.

Standpipe/Water Supply Permit: \$100.00

Per system when not installed in conjunction with new building construction.

Vent/Hood Suppression System \$150.00

This fee covers reviewing plans, witnessing the testing and inspection of fire extinguishing system in kitchen vent hoods and exhaust ducts.

Flammable/Combustible Liquids and Gas Permits and Fees

Aboveground Fuel Tank Installation/Removal (per tank – including LPG) \$300.00

This fee is for reviewing plans, witnessing the placement and inspection of aboveground fuel tank installation or removal.

Fuel Dispensing Facility Inspection and Registration \$150.00

This fee is applicable for the registration of all facilities in unincorporated Kerr County where flammable or combustible liquid or gas are dispensed.

Fuel Dispensing Facility Inspection and Registration Renewal \$100.00

This fee is applicable for the registration of all facilities in unincorporated Kerr County where flammable or combustible liquid or gas are dispensed. This renewal fee is applicable if renewed prior to the expiration of the current permit.

Underground Fire Protection System \$250.00

This fee covers reviewing plans, conducting rough-in-inspection and witnessing the 2 hour hydrostatic testing on underground fire protection lines for fire sprinkler, fire protection standpipes and fire hydrants installed on both public and private water systems.

Underground Fuel Tank Installation/Removal (per tank – including LPG) \$300.00

This fee is for reviewing plans, witnessing tank testing and inspecting pre and post underground fuel tank installation or removal.

Underground Fuel Line Pressure Testing \$150.00

This fee will be assessed for witnessing the pressure test of modified or newly installed fueling system supply lines.

Fireworks and Explosive Permits and Fees

Seasonal Fireworks Stand Inspections \$30.00

This fee is for the inspection of fireworks stands to ensure compliance with the adopted Fire Code and minimum safety standards adopted by the State.

July and December Fireworks Stand Permits and Inspections \$50.00

This fee is the same as Seasonal Fireworks but if the stand operator wishes they can purchase one permit. This permit fee is good only for the July and December Fireworks selling period. This application must be processed prior to the July sells date and is good for that year only.

Pyrotechnics Authorization \$50.00 per Event

The fee is for the review of a proposed pyrotechnics display, inspection for the proposed display site, and to verify the pyro-technician's license. The fee is applicable for any public or private fireworks display utilizing any class of regulated fireworks. The fee does not include the fee for a Fire Watch that may be required by the Fire Marshal.

Pyrotechnics Authorization Annually \$80.00

This fee is for the review of a proposed pyrotechnics display, inspection for the proposed display site, and to verify the pyro-technician's licenses. The fee is applicable for any public or private fireworks display utilizing any class of regulated fireworks. The fee does not include the fee for a Fire Watch that may be required by the Fire Marshal.

Blasters License

Blaster – Basic (quarry blasting operations; blasting in large isolated areas) **\$200.00 annually**
Blaster – Intermediate (Basic +Septic systems, swimming pool, and similar blasting) **\$250.00 annually**
Blaster – Advanced (intermediate + specialty close to habitable structures) **\$300.00 annually**

This fee is for the processing, testing and associated background investigation of an explosive technician. The fee includes the issuance of a blasters license.

Explosives Storage Permit \$200.00 annually

This fee is for the review of a proposed explosive storage building or container and site inspection to ensure compliance with the adopted Fire Code.

Special Storage Permit – (for items listed in Fire Code as "Prohibited Explosives) \$300.00 annually

Explosives Storage Permit Renewal \$125.00

This fee is for the review of previously permitted explosive storage building or container and site inspection to ensure compliance with the adopted Fire Code. This fee is applicable if renewed prior to expiration of current permit expiration.

Quarry Operations Permit \$300.00 annually

This fee is for the authorization of a quarry operations permit requiring the use of explosives, and blasting operations. All quarry operations are subject to review of blasting statistical reports if citizen complaints are registered.

Explosive Excavation Permit \$200.00 (valid for 90 days)

This fee is to evaluate the plans, licenses of contractors, site inspections and to authorize the use of explosives for construction related projects. These include swimming pool excavations, utilities installation, site leveling, and all short term projects requiring explosive use.

Food Vendor

Mobile Vendor Registration \$125.00 annually

This fee is applicable to all mobile food service vendor vehicles operating in unincorporated Kerr County for the registration, and inspection of the fire safety features of the vehicle.

Mobile Vendor Registration Renewal \$100.00 annually

This fee is applicable to all mobile food service vendor vehicles operating in unincorporated Kerr County for the registration, and inspection of the fire safety features of the vehicle. This

renewal fee is applicable if renewed within 30 days before or after the expiration of the current permit.

State Required License Inspections: See Below

State licensed facilities that require annual fire inspection for operational permits. Non-profit or government organizations are exempt from this section.

1. Daycares \$ 50.00
2. Nursing or care centers \$150.00
3. Hospitals \$200.00
4. Institutional restrained \$200.00
5. Licensed in home facilities..... \$ 50.00
6. Foster homes or adoption centers/homes.. exempt

Miscellaneous Fees

After-Hours Fee **\$75.00/hr. (2 hour minimum)**

If circumstances warrant, and with prior approval, the Fire Marshal may have an inspector review a plan, conduct an inspection, or witness a test outside normal working hours of 8:00 A.M to 5:00 P.M. (Monday through Friday) when a written request is made by the contractor, the owner or the owner's representative at least 3 days in advance of the desired work. This fee for this service shall be paid immediately after the conclusion of the special service in addition to any other required fees.

Consultation Fee **\$50.00/hr. (2 hour minimum)**

This fee will be assessed for preliminary review of construction plans or other consultations with architects, engineers, contractors, and sub-contractors. This fee will also be assessed when an on-site consultation is requested or required.

Mass Gathering Permit Processing **\$200.00**

This fee is for the processing of a mass gathering permit application, the required site inspection, and the processing of the associated documents required to obtain Commissioners Court approval to conduct a Mass Gathering as required by State Law. If application for a mass gathering is not submitted 45 days in advance of the event, a \$50.00 late application fee will be charged.

Modification Permit **\$75.00**

Review of plans after a modification has been made after the plans have been approved and a permit issued.

Includes: Existing sprinkler system (up to thirty sprinkler heads)
Existing alarm systems (up to ten initiating/signaling devices)

Modular/Mobile Structure Installation Permit **\$300.00**

This fee is for the installation of a mobile or modular structure that will be used for commercial or public access purposes. It will include the plan review of the structure and inspection after

installation to ensure the structure meets the intent of the adopted Fire Code. This is for mobile/modular structures that will be used for greater than 365 days.

Re-inspection Fee **\$40.00 per hr. (\$40.00 minimum)**

This fee will be assessed for each re-inspection required to bring a previously identified fire hazard related problem into compliance with the law. All re-inspection fees shall be paid before or at the time re-inspection will be performed. This fee will also be assessed if a scheduled fire inspection is not canceled within four (4) hours of the scheduled date and time.

Re-inspection/Retest: **\$30.00** for each re-inspection.

This fee shall be paid before any subsequent inspections are made.

Temporary Structure Permits **Less than 144 sq. ft. \$50.00**
More than 144 sq. ft. \$50.00 + \$.175 sq. ft.

This fee is for registration and inspection of temporary structures (tents, air supported structures, canopies, construction trailers, etc.) The fee includes inspection for the structure to ensure compliance with the adopted Fire Code requirements. Valid for up to 365 days.

Tent permits: **\$50.00**

Any tent over 500 Square Feet.

COMMISSIONERS' COURT AGENDA REQUEST

**PLEASE FURNISH ORIGINAL AND ONE COPY OF THIS REQUEST AND
DOCUMENTS TO BE REVIEWED BY THE COURT.**

MADE BY: Charlie Hastings

OFFICE: Engineering

MEETING DATE: 3/9/2026

TIME PREFERRED:

SUBJECT: Consider, discuss and take appropriate action for the court to consider a change order with MPB, Inc. in the amount of \$48,174.88 for freshwater mussel recovery and relocation services for the 2025 Disaster Recovery Bridge Rehabilitation Project #959488 (25-0026 02 July Severe Weather #4879DR – Cade Loop Bridge Damage #1726721), Pct. 4.

EXECUTIVE SESSION REQUESTED: N/A

NAME OF PERSON ADDRESSING THE COURT: Charlie Hastings

ESTIMATED LENGTH OF PRESENTATION: 5 mins

IF PERSONNEL MATTER - NAME OF EMPLOYEE:

Time for submitting this request for Court to assure that the matter is posted in accordance with Title 5, Chapter 551 and 552, Government Code, is as follows:

Meeting scheduled for Mondays: 12:00 P.M. previous Monday.

THIS REQUEST RECEIVED BY:



THIS REQUEST RECEIVED ON:

2/25/2026 @ 4:30 PM

All Agenda Requests will be screened by the County Judge's Office to determine if adequate information has been prepared for the Court's formal consideration and action at time of Court Meetings. Your cooperation will be appreciated and contribute towards your request being addressed at the earliest opportunity. See Agenda Request Rules Adopted by Commissioners' Court.



Kerr County Engineering Dept.

3766 Hwy. 27

Kerrville, Texas 78028

TO: Commissioners' Court
FROM: Charlie Hastings, P.E., CFM
DATE: March 9, 2026

RE: Consider, discuss and take appropriate action for the court to consider a change order with MPB, Inc. in the amount of \$48,174.88 for freshwater mussel recovery and relocation services for the 2025 Disaster Recovery Bridge Rehabilitation Project #959488 (25-0026 02 July Severe Weather #4879DR – Cade Loop Bridge Damage #1726721), Pct. 4.

On December 22, 2025 the court authorized a contract with MPB, Inc. in the amount of \$1,002,432.50 for the rehabilitation of Cade Loop Bridge. The bridge was damaged during July 2025 flooding and work is required to protect native freshwater mussels that could possibly be affected by bridge repairs. The scope includes development of an Aquatic Resource Recovery Plan which describes how mussels will be recovered and relocated, an approved stocking/relocation permit, and a three-day field survey and relocation. Coordination with the US Fish and Wildlife Service and Texas Parks and Wildlife for approval of sampling design and survey permitting and Federal Emergency Management Agency final report submittal/acceptance is included. The change order amount is \$48,174.88.

The County Engineer requests the court approve a change order with MPB, Inc. in the amount of \$48,174.88 for freshwater mussel recovery and relocation services for the 2025 Disaster Recovery Bridge Rehabilitation Project #959488 (25-0026 02 July Severe Weather #4879DR – Cade Loop Bridge Damage #1726721), Pct. 4.

Construction Change Order

Owner: **Kerr County**

Change Order No. 1

Project: **2025 Disaster Recovery Cade Loop Bridge Rehabilitation Project**
(CADE LOOP BRIDGE Damage #1726721)

Contractor:

MPB, Inc.

PO Box 66

Center Point, TX 78010

Owner:

Kerr County

700 Main Street

Kerrville, TX 78028

Issue Date: March 9, 2026

Effective Date: **March 9, 2026**

The Contract is modified as follows upon execution of this Change Order:

Description:

Add Item: Mussel Survey and Relocation - The bridge was damaged during July 2025 flooding and work is required to protect native freshwater mussels that could possibly be affected by bridge repairs. The scope includes development of an Aquatic Resource Recovery Plan which describes how mussels will be recovered and relocated, an approved stocking/relocation permit, and a three-day field survey and relocation. Coordination with the US Fish and Wildlife Service and Texas Parks and Wildlife for approval of sampling design and survey permitting and Federal Emergency Management Agency final report submittal/acceptance is included. Add \$48,174.88 (Mussel Survey and Relocation \$45,448.00, Bond \$454.48, Overhead \$2,272.40).

Attachments: *Scope of Work (SOW) Cade Loop Bridge Guadalupe River Mussel Survey and Relocation dated 2/19/2026 as prepared by Freese & Nichols*

Contract Change Summary:

	Contract Amount	Contract Time	
Original Contract:	\$ 1,002,432.50	75	Days
Previous Change Orders ADD (DEDUCT)	\$ -	0	Days
Current Contract:	\$ 1,002,432.50	75	Days
This Change Order ADD (DEDUCT)	\$ 48,174.88	0	Days
New Contract Total:	\$ 1,050,607.38	75	Days

Change Order No. 1 Recommended by:

Engineer:

Charlie Hastings
Kerr County Engineer

2/26/2026
Date

Charlie Hastings
Name (print)

Project Engineer
Title (print)

Change Order No. 1 Approved by:

Contractor:

Brittany Butler
MPB, Inc.

2/26/2026
Date

Brittany Butler
Name (print)

Chief of Administration Operations
Title (print)

Owner:

Kerr County

Date

Robt Kelly
Name (print)

Kerr County Judge
Title (print)

Change Order No. 1 Approved as to form:

Kerr County

Date

Heather Stebbins
Name (print)

Kerr County Attorney
Title (print)



Innovative approaches
Practical results
Outstanding service

10431 Morado Circle, Suite 300 + Austin, Texas 78759 + 512-617-3100 + FAX 817-735-7491

www.freese.com

February 19, 2026

Blane Deaton
MPB, Inc.
5831 Hwy 27 Building A, Suite 101
Center Point, TX 78010

RE: SOW – Cade Loop Bridge: Guadalupe River Mussel Survey and Relocation

Freese and Nichols, Inc. (FNI) is pleased to submit the following SOW in response to MPB's request for a freshwater mussel recovery and relocation at the Cade Loop Bridge. The bridge was damaged during July 2025 flooding and work is required to protect native freshwater mussels that could possibly be affected by bridge repairs. The scope includes development of an Aquatic Resource Recovery Plan (ARRP) which describes how mussels will be recovered and relocated, an approved stocking/relocation permit, and a three-day field survey and relocation. Coordination with the U.S. Fish and Wildlife Service (USFWS) and Texas Parks and Wildlife (TPWD) for approval of sampling design and survey permitting and Federal Emergency Management Agency (FEMA) final report submittal/acceptance is included.

Survey work will be performed under FNI's Section 10(a)(1)(A) Scientific Permit (ESPER12087672) and TPWD scientific collection permit 1006-756, only after an approved ARRP and stocking/relocation permit are in hand.

Scope of Work

After issuance of a Notice to Proceed, FNI will coordinate with the USFWS and TPWD to receive the necessary permissions to perform the mussel survey. Access, safety, and schedule will be coordinated with MPB. This effort is limited to the Cade Loop bridge crossing, including the impact area proposed for the bridge realignment. Mussels will be recovered and relocated prior to in-water construction activities.

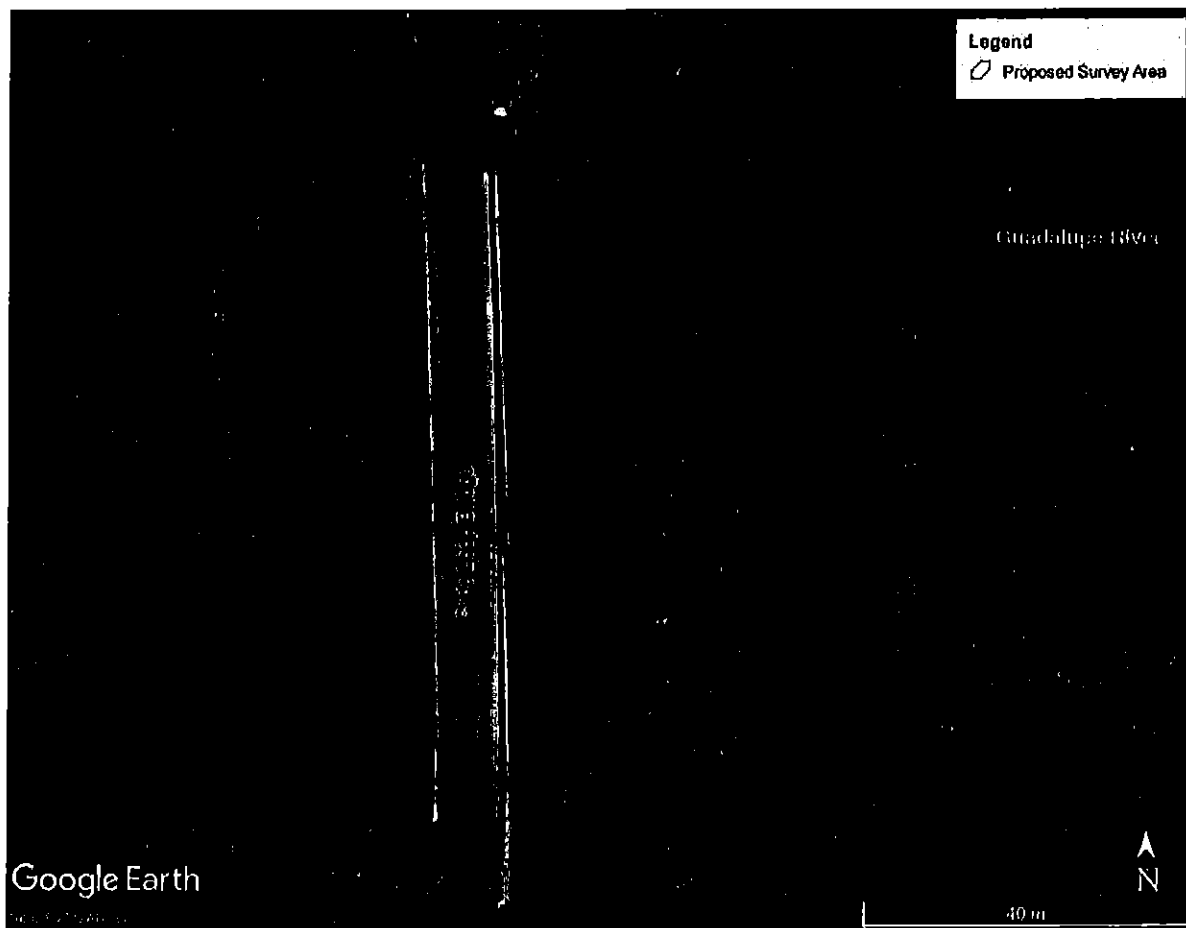
This SOW assumes one mobilization and up to three (3) field days with a five (5) person crew to complete the mussel survey within the defined extents. Additional field days or remobilizations requested by the Owner/contractor or required due to agency direction, will be performed under a written amendment. Up to five (5) FNI biologists will travel to the site to conduct a mussel recovery and relocation at the Guadalupe River in Ingram. The survey will be conducted by wading, as expected water depth is less than 1 m (3.3 ft). Biologists will systematically search for and remove any live mussels within the proposed survey area, which will include the bridge realignment direct impact area, and upstream and downstream buffers (to be approved by USFWS/TPWD). See **Figure 1** for a proposed survey buffer, with 25 m upstream and 50 m downstream buffers.

Within the project area the Guadalupe River is considered a Group 1 stream – a small/medium perennial waterbody that includes designated or proposed Critical Habitat for federally listed mussel species or reaches known to or may be inhabited by federally listed species. Based on the Texas Freshwater Mussel Survey Protocol (TPWD/USFWS, April 2024) for Group 1 streams, the preferred instream survey method is the cell methodology. Survey extents will include the area of direct impact (ADI) and prescribed buffers for a linear crossing (roads/bridges), surveyed bank-to-bank. The ADI and associated buffer areas will be divided into cells not to exceed 100 m², and mussel, habitat, and survey-effort data will be recorded independently for each cell. Minimum search effort will be 0.5 min/m² in homogenous

substrates (bedrock/silt/sand) or 0.75 min/m² in heterogeneous substrates (mixed substrates including gravel/cobble/boulder/bedrock).

Collected live mussels (common species) will be placed in mesh bags and kept underwater until the end of the survey. Following the search period, mussels will be identified, enumerated, and representative photos will be taken of each species. At the end of the search period, any live mussels collected will be carried in mesh bags to the relocation site and placed in areas with suitable substrate and habitat. Water quality measurements including dissolved oxygen will be taken with a Hydrotech Compact DS® sonde.

Figure 1. Proposed Survey Area



If a state- or federally listed mussel species is encountered, FNI will follow permit and protocol requirements and will coordinate promptly with USFWS/TPWD. Additional survey effort, revised methods, expanded extents, additional relocation measures, monitoring, or remobilization resulting from agency direction are not included in this SOW and will require a written scope amendment.

A report will be drafted after the survey and will be provided to MPB for one round of review and comment, within three (3) weeks of survey completion. The final report, addressing edits, will be delivered to MPB within two weeks after receipt of comments, and copies of the report will be sent to USFWS/FEMA/TPWD after final approval.

The deliverables will include preparation and submittal of the ARRP for agency review, coordination to support TPWD/USFWS review, completion of the mussel field survey/relocation (upon receipt of required authorizations), and a final report. The final report will include:

- Project and site overview: project description/impacts and basic watershed/stream setting and location information.
- Methods: survey extents (ADI and required buffers, bank-to-bank coverage/coordinates) and survey approach, including handling/processing procedures.
- Results: survey dates and personnel, habitat summary, and mussel results (species observed, counts/relative abundance, mussel lengths, notable species).
- Relocation (if performed): relocation site limits/coordinates, required qualitative survey documentation, and salvage/relocation procedures
- Figures/tables & deliverables: maps showing survey extents and sampling units and (if applicable) relocation extents; summary tables; representative photo vouchers; references; and the TXNDD Mussel Data Reporting Form (Excel).

Fee Estimate

A total not to exceed **\$45,448** is proposed for the survey work at the Cade Loop bridge. A task breakdown is included below.

Task	Labor	Expenses	Total
1. Project Management and ARRP Permitting	\$2,878	\$136	\$3,014
2. Mussel Survey Field Effort	\$32,126	\$4,787	\$36,913
3. Analysis and Reporting	\$5,334	\$187	\$5,521
Total	\$40,338	\$5,110	\$45,448

Schedule

USFWS/TPWD typically request 30 days to approve and issue the ARRP based on the mussel survey plan, but FNI will apply for and likely receive a permit within three weeks. Work can begin as soon as NTP is received.

Please contact me if you have any questions. Thank you for the opportunity to assist MPB.



Respectfully,
Aaron Petty
aaron.petty@freese.com
(512)617.3124

COMMISSIONERS' COURT AGENDA REQUEST

**PLEASE FURNISH ONE ORIGINAL AND ONE COPY OF THIS REQUEST AND
DOCUMENTS TO BE REVIEWED BY THE COURT.**

MADE BY: Sylvia Zapata

OFFICE: Human Resources

MEETING DATE: March 9, 2026

TIME PREFERRED:

SUBJECT: Consider, discuss and take appropriate action to revise current comp time policy.

EXECUTIVE SESSION REQUESTED:

NAME OF PERSON ADDRESSING THE COURT: Sylvia Zapata

ESTIMATED LENGTH OF PRESENTATION:

IF PERSONNEL MATTER - NAME OF EMPLOYEE:

Time for submitting this request for Court to assure that the matter is posted in accordance with Title 5, Chapter 551 and 552, Government Code, is as follows:

Meeting scheduled for Mondays: 12:00 P.M. previous Monday.

THIS REQUEST RECEIVED BY:

THIS REQUEST RECEIVED ON:

_____ @ _____

All Agenda Requests will be screened by the County Judge's Office to determine if adequate information has been prepared for the Court's formal consideration and action at time of Court Meetings. Your cooperation will be appreciated and contribute towards you request being addressed at the earliest opportunity. See Agenda Request Rules Adopted by Commissioners' Court.

COMMISSIONERS' COURT AGENDA REQUEST

**PLEASE FURNISH ONE ORIGINAL AND ONE COPY OF THIS REQUEST AND
DOCUMENTS TO BE REVIEWED BY THE COURT.**

MADE BY: Judge Kelly

OFFICE: County Judge

MEETING DATE: March 9, 2026

TIME PREFERRED:

SUBJECT: Consider, discuss and take appropriate action to approve Budget Calendar for FY 26-27.

EXECUTIVE SESSION REQUESTED:

NAME OF PERSON ADDRESSING THE COURT: Judge Kelly

ESTIMATED LENGTH OF PRESENTATION:

IF PERSONNEL MATTER - NAME OF EMPLOYEE:

Time for submitting this request for Court to assure that the matter is posted in accordance with Title 5, Chapter 551 and 552, Government Code, is as follows:

Meeting scheduled for Mondays: 12:00 P.M. previous Monday.

THIS REQUEST RECEIVED BY:

Rebecca Kelly

THIS REQUEST RECEIVED ON:

March 2, 2026 @ *4:45 PM*

All Agenda Requests will be screened by the County Judge's Office to determine if adequate information has been prepared for the Court's formal consideration and action at time of Court Meetings. Your cooperation will be appreciated and contribute towards your request being addressed at the earliest opportunity. See Agenda Request Rules Adopted by Commissioners' Court.

KERR COUNTY BUDGET CALENDAR – FY 2026-2027

3/9/2026

(Subject to Revisions and/or Additions)

(Timeline is based on tax rate not exceeding the voter-approval rate)

Approved _____ – Court Order _____

- April 10 (Fri)** Budget Instruction Manual and worksheets to departments & outside agencies by Auditor's Office.
- April 13 (Mon)** Up to date Position Schedule to individual Elected Officials/department heads by HR.
- By April 30 (Thurs)** Deadline for chief appraiser to provide preliminary tax roll values. *Tax Code 26.01(e) & (f)*
- May 14 (Thurs)** Deadline for departments & outside agencies to return budget requests. *LGC 111.005*
- May 19 (Tues)** Departments and outside agencies budgets opened for Commissioners to review. *LGC 111.003*
- May 21 (Thurs)** Commissioners Court holds budget workshop 9:00 a.m. with Departments.
- May 26 (Tues)** Commissioners Court agenda item for public input for 2026-27 budget.
- May 29 (Fri)** Commissioners Court holds budget workshop 9:00 a.m. with Departments.
- June 1 (Mon)** Commissioners Court holds budget workshop 9:00 a.m. with Departments.
- June 2 (Tues)** County Judge begins preparation of the Judge's Recommended 2026-27 budget.
- June 8 (Mon)** Commissioners Court agenda item for public input for 2026-27 budget.
- June 22 (Mon)** Commissioners Court agenda item for public input for 2026-27 budget.
- July 13 (Mon)** Commissioners Court agenda item for public input for 2026-27 budget.
- July 13 (Mon)** County Judge presents Judge's Recommended 2026-27 budget.
- July 13 (Mon)** Commissioners Court input on Judge's Recommended 2026-27 budget. Agenda items: 1) Grievance Committee, 2) Set wage adjustment, 3) Approve special requests, 4) Approve new positions. Budget workshop 2 p.m.
- By July 25 (Sat)** Deadline for chief appraiser to certify appraisal roll to Tax Assessor-Collector. *Tax Code 26.01(a).*
- July 27 (Mon)** Commissioners Court agenda item for public input for 2026-27 budget.
- July 27 (Mon)** Commissioners Court input on Proposed 2026-27 budget. Agenda items: 1) Proposed salaries for Elected Officials, 2) Base salaries for Elected Officials, 3) Discussion of Proposed Budget, 4) Tentative approval of Proposed Budget, 5) Tax rate discussion
- July 27 (Mon)** Commissioners Court budget workshop at 2 p.m. for Proposed Budget and discuss tax rate and tentatively approve Proposed Budget (if necessary).

KERR COUNTY BUDGET CALENDAR – FY 2026-2027

3/9/2026

(Subject to Revisions and/or Additions)

(Timeline is based on tax rate not exceeding the voter-approval rate)

- July 30 (Thurs)** Before filing annual budget with County Clerk, give written notice to each Elected County Officer of official's proposed salary and personal expenses. *LGC 152.013(c)*.
- July 31 (Fri)** Budget Officer files copy of Proposed Budget with County Clerk. Copy shall be available for public inspection and posted on website. *LGC 111.006, 111.037, 111.066*
- By Aug 1 (Sat)** Tax Assessor-Collector submits appraisal roll, and certifies the anticipated collection rate for the current year to Commissioners Court. If the collector certified an anticipated collection rate in the preceding year and the actual collection rate in that year exceeded the anticipated rate, the collector must also certify the amount of debt taxes collected in excess of the anticipated amount in the preceding year. *Tax Code 26.04(b)*. If the anticipated collection rate is lower than the lowest actual collection rate of any of the three preceding years, the anticipated collection rate is equal to the lowest actual collection rate for any of the three preceding years. *Tax Code 26.04 (h-j)*. (By August 1 or as soon as practicable (ASAP) after)
- ASAP after Aug 1** Designated officer or employee must calculate the no-new-revenue and voter-approval tax rates and submit and certify the calculation forms to the County Tax Assessor-Collector. *Tax Code 26.04(c), (d2), (d-3)*.
- By August 7 (Fri)** Designated officer or employee must submit the adopted tax rate, maintenance and operations rate, debt rate, no-new-revenue tax rate, no-new-revenue maintenance and operations rate, and voter-approval tax rate to Commissioners Court and post the rates on the homepage of the County's website in the manner prescribed by the Comptroller. *Tax Code 26.16, 26.18, Tax Code 26.04 (e)*. (By August 7 or ASAP after)
- August 10 (Mon)** Set date of vote on the Proposed Budget. (August 24th) *LGC 111.008*
- Set date of public hearing on Proposed Budget. (not later than the 25th day after the day the budget is filled under *LGC 111.007*, (August 24th))
- Agenda items to approve Step & Grade, Position Schedule, General Provisions
- Designated officer or employee to submit no-new-revenue and voter-approval tax rates to Commissioner's Court. *Tax Code 26.04 (c), (e)*
- August 12 (Wed)** Commissioners Court budget workshop at 2p.m. to finalize Proposed Budget and discuss tax rate and tentatively approve Proposed Budget (if necessary).
- August 14 (Fri)** County Clerk publishes newspaper notice of public hearing on Proposed Budget. (Must be published not earlier than the 30th day, and not later than the 10th day, before date of hearing, (August 24th) *LGC 111.003(b) & LGC 111.0075*
- If the salary, expenses or other allowances of any elected county or precinct official are proposed to be increased, County Clerk publishes newspaper notice. (Must be published before the 10th day before the date of the meeting, (August 24th) *LGC 152.013 (b)*
- August 18 (Tues)** Post notice of budget hearing at least 3 business days before meeting. *LGC 111.007 (c) & Open Meetings Act*

KERR COUNTY BUDGET CALENDAR – FY 2026-2027

3/9/2026

(Subject to Revisions and/or Additions)

(Timeline is based on tax rate not exceeding the voter-approval rate)

- August 24 (Mon)** Public hearing on Proposed Budget *LGC 111.007 (b-c)*
- Vote to set salaries, expenses and other allowances of all elected county and precinct officers. *LGC 152.013*
- Vote to adopt budget during Commissioners' Court. *LGC Chapter 111 contains specific requirements for voting and required language.*
- Set proposed tax rate and date of proposed tax rate hearing (September 14th).
- Sept. 4 (Fri)** Post notice of tax hearing on home page of website at least seven days immediately before the public hearing on the proposed tax rate increase and at least seven days immediately before the date of the vote proposing the increase in the tax rate. *Tax Code 26.065*
- Sept. 9 (Wed)** Notice of tax hearing given by publication in newspaper (or mailing to property owners). Cannot hold public hearing before the fifth day after the date the notice of the public hearing is given. *Tax Code 26.06 (a, b-2, c), 26.063.*
- Sept. 14 (Mon)** Public hearing on proposed tax rate. Public hearing required when proposing a tax rate that exceeds the lower of the voter-approval tax rate or the no-new-revenue tax rate. *Tax code Section 26.05(d)*
- Sept. 14 (Mon)** Adoption of tax rate during Commissioners Court should take place. A vote is required if adopted rate exceeds the no-new-revenue rate. The adopted rate must be broken down into two components: (1) debt service and (2) maintenance and operations. The total adopted rate cannot exceed the proposed tax rate. At least four members of Commissioners Court must be present and at least three must vote in favor. *LGC 81.006, 111.008, and tax code 26.05(d-1)(1), 26.06(d).*

*****Commissioners Court may not hold a public hearing on a proposed tax rate or a public meeting to adopt a tax rate until the fifth day after the Chief Appraiser has delivered notice of estimated taxes to be imposed on owner's property, and made public, required tax rate calculation forms and tax rate certification requirements. Tax Code 26.05 (d-1(1))*****

Sources: TAC Senate Bill 2 Explanatory Q & A, Senate Bill 2, 2020-2021 Budget Timeline, Written Notice of Deadlines Added or Amended by Senate Bill 2, 86th Legislative Session and Kerr County Budget Calendar – FY 2020-21. Senate Bill 1357 passed 5/4/21 at 87th Legislative Session, House Bill 1522 passed 5.25.25.